



KOSPI Market Disclosure Regulation

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PART I. REPORTING, ETC BY KOSPI MARKET-LISTED CORPORATIONS

CHAPTER I. GENERAL PROVISIONS

§1. Purpose

The purpose of this Part is to stipulate the matters necessary for reporting, disclosing and managing the corporate information in the KOSPI Market established by the Korea Exchange (hereinafter referred to as "the Exchange") pursuant to Article 391 of the Financial Investment Services and Capital Markets Act (hereinafter referred to as "the Act"). (Wholly amended on January 28, 2009)

§2. Definitions

(1) The term "KOSPI market-listed corporation" in this Part means a corporation prescribed in Article 9(15)3 of the Act, which is listed on the KOSPI Market. Provided that, the investment companies under the Act and the companies which specialize in investing and financing for infrastructure under the Act on Public-Private Partnerships in Infrastructure shall be excluded.

(2) The term "listed foreign corporation" in this Part means a foreign corporation that falls under any of the following subparagraphs:

1. A foreign corporation that has issued the stocks listed on the KOSPI Market; and
2. In cases where the depository receipts (DRs) (referring to the depository receipts prescribed in Article 4(8) of the Act; the same hereinafter) related to stocks are listed on the KOSPI Market, the foreign corporations which issued the relevant stocks.

(3) The term "inquired disclosure" in this Part refers to the reporting of corporate information to the Exchange by a KOSPI-stock-listed corporation in response to the request for disclosure of such information which the Exchange has made to the relevant corporation pursuant to the provisions of Article 391(2)3 of the Act.

(4) The term "disclosure officer" in this Part means a person of a KOSPI-stock-listed corporation [in the case of entrusted management real estate investment trusts and corporate restructuring real estate investment trusts (including the case where a self-managed real estate investment trust entrusted its general clerical services to an institution entrusted with general clerical services, etc.) referred to in paragraph (14), it shall be the company entrusted with business administration; in the case of ship investment companies under paragraph (18), it shall be the ship management company] who falls under any of the following subparagraphs and is authorized to perform the reporting duties on behalf of the relevant KOSPI-stock-listed corporation. Provided that, in the case of a corporation which has filed an application for commencement of rehabilitation procedures (including the simple rehabilitation procedures;

the same hereinafter.) or has received a court ruling on the commencement of rehabilitation procedures under the Debtor Rehabilitation and Bankruptcy Act, the protective custodian under [§85] or the custodian under Article 74 of the same Act shall be deemed to be the disclosure officer. (Amended on April 18, 2012; July 22, 2015)

1. The representative director or a full-time director (in the case of a corporation with the executive officer system, it refers to the chief executive officer or executive officers; the same hereinafter); and

2. As a full-time employee who falls under the provisions of Article 401-2(1)3 of the Commercial Act, the one who attends the board meetings or other meetings where material management decisions are made.

(5) The term "unfaithful disclosure" in this Part refers to a case where a KOSPI-stock-listed corporation falls under any of the cases of noncompliance with disclosure obligations, reversal of disclosure or change of disclosure, by failing to faithfully fulfill the reporting obligations under this Regulation or reversing or changing the details of the information already reported.

(6) The term "unfaithful disclosure corporation" in this Part refers to a KOSPI-stock-listed corporation that has been designated as an unfaithful disclosure corporation pursuant to [§35(1)] since it fell under the cases of unfaithful disclosure under paragraph (5). (Amended on November 24, 2021)

(7) The term "largest shareholder", "major shareholder" and "affiliated company" in this Part refers to a person mentioned in each of the following subparagraphs, respectively: (Amended on February 22, 2013; July 22, 2015; December 28, 2016; November 24, 2021)

1. Largest shareholder: The largest shareholder prescribed in Subparagraph 6(a) of Article 2 of the Act on Corporate Governance of Financial Companies. In such cases, "financial companies" shall be construed as "KOSPI-stock-listed corporations" and "outstanding voting shares (or equities; hereafter the same shall apply)" shall be construed as "outstanding shares";

2. Major shareholder: The major shareholder prescribed in Subparagraph 6(b) of Article 2 of the Act on Corporate Governance of Financial Companies. In such cases, "financial companies" shall be construed as "KOSPI-stock-listed corporations". Provided that, from among the professional investors under Article 9(5) of the Act, those who are stipulated in the Enforcement Rules of this Regulation (hereinafter referred to as "the Enforcement Rules") and do not exert influence on the management of the relevant corporation shall be excluded;

3. Affiliated company: The affiliated company (including foreign corporation) prescribed in Subparagraph 12 of Article 2 of the Monopoly Regulation and Fair Trade Act (hereinafter referred to as "the Fair Trade Act")

(8) The term "stocks, etc." in this Part means the stocks or depository receipts.

(9) The term "derivatives" in this Part means the derivatives prescribed in Article 5 of the Act.

(10) The term “equity capital” in this Part means the amount that is calculated according to the following formula on the basis of the financial statement as at the end of the latest fiscal year (in cases where any of the actions under Articles 522, 527-2, 527-3 and 530-2 of the Commercial Act have taken place after the end of the latest fiscal year, it shall refer to the effective date of the relevant action; the same hereinafter in this Paragraph):

Equity Capital = Total assets– Total debts ± The amount of increase/decrease in capital stock and capital surplus during the period from the end of the latest fiscal year to the date when the cause for reporting or disclosure occurred

(11) The term “holding company” in this Part refers to a company falling under any of the following subparagraphs. Provided that, in the case of foreign companies, it shall refer to the company (hereinafter referred to as the “foreign holding company) whose primary business is to control the business activities of another company by holding the stocks of the company (In cases where the aggregate value of stocks of subsidiaries held exceeds 50% of total assets): (Amended on November 4, 2011; February 22, 2013; November 24, 2021)

1. A holding company under Subparagraph 7 of Article 2 of the Fair Trade Act;
2. A financial holding company under Article 2(1)1 of the Financial Holding Companies Act; and
3. A company under [§2(1)20(c)] of the KOSPI Market Listing Regulation (hereinafter referred to as “the Listing Regulation”).

(12) The term “subsidiary” in this Part refers to a company falling under any of the following subparagraphs. Provided that, the subsidiary of a foreign holding company shall refer to the subsidiary subject to consolidation in accordance with the accounting standards adopted by the foreign holding company. (Amended on November 4, 2011; February 22, 2013; November 24, 2021)

1. A subsidiary prescribed in Subparagraph 8 of Article 2 of the Fair Trade Act;
2. A subsidiary prescribed in Article 2(1)2 of the Financial Holding Companies Act; and
3. A subsidiary under [§2(1)22(c)] of the Listing Regulation.

(13) The term “large-sized corporation” in this Part refers to a KOSPI market-listed corporation of which total asset is KRW 2 trillion or more at the end of the latest fiscal year.

(14) The term “real estate investment companies” in this Part refers to the self-managed real estate investment trusts, the entrusted management real estate investment trusts and the corporate restructuring real estate investment trusts under Subparagraph 1 of Article 2 of the Real Estate Investment Company Act.

(15) The term “financial creditor” in this Part refers to a financial creditor provided for in Subparagraph 2 of Article 2 of the Corporate Restructuring Promotion Act. (Amended on December 28, 2016)

(16) The term “principal creditor bank” in this Part refers to a principal creditor bank prescribed in Subparagraph 5 of Article 2 of the Corporate Restructuring Promotion Act. (Amended on December 28, 2016)

(17) The term “council of the financial creditors” in this Part means the council of financial creditors provided for in Article 22 of the Corporate Restructuring Promotion Act. (Amended on April 18, 2012; December 28, 2016)

(18) The term “ship investment companies” in this Part refers to the ship investment companies under Article 2 of the Ship Investment Company Act. (Amended on January 28, 2009)

(19) The term “minority shareholder” in this Part means a shareholder who owns less than 1% of total shares issued by the relevant corporation. Provided that, a shareholder who falls under the largest shareholder and its affiliated persons (hereinafter referred to as “the largest shareholder, etc.”) shall not be deemed as a minority shareholder. [January 28, 2009]

(20) The term “special purpose acquisition company” in this Part refers to a special purpose acquisition company under Article 6(4)14 of the Enforcement Decree of the Act. [December 18, 2009]

(21) The term “parent company”, “consolidated subsidiary” and “principal consolidated subsidiary” in this Part refers to a company noted in each of the following subparagraphs: [February 22, 2013] (Amended on July 22, 2015; December 19, 2018)

1. Parent company: A parent company prescribed in Subparagraph 3 of Article 2 of the Act on the External Audit of Stock Companies, etc. (hereinafter referred to as the “Act on External Audit”). Provided that, in cases where a listed foreign corporation prepares consolidated financial statements in accordance with the accounting standards adopted by the corporation including the international accounting standards, the parent company according to those standards.

2. Consolidated subsidiary: A subsidiary prescribed in Article 7(1) of the Act on External Audit. Provided that, in cases where a listed foreign corporation prepares the consolidated financial statement pursuant to the accounting standards adopted by the corporation, including the international accounting standards, the subsidiary according to those standards.

3. Principal subsidiary: From among the consolidated subsidiaries noted in subparagraph 2, the one of which total asset in the latest fiscal year is at least 10/100 (2/1000 in the case of a large-sized company) of total asset of the parent company.

(22) In addition to the definitions in paragraphs (1) through (21), the terms used in this Part shall have the same meaning as those given to them in the Act, the Enforcement Decree of the Act, the Enforcement Rule of the Act and other relevant statutes, and the rules and regulations concerning the business of the Exchange. (Amended on December 18, 2009; February 22, 2013)

(Wholly amended on January 28, 2009)

§3. Applicable Standards

(1) The financial matters applied in this Part shall be based on the financial statements (referring to the consolidated financial statement, in the case of a KOSPI-stock-listed corporation which is a holding company or a parent company; the same hereinafter) revised according to the result of the audit conducted by an auditor prescribed in Article 2(7) of the Act on External Audit (hereinafter referred to as "CPA auditor"). Provided that, this provision shall not apply to the financial matters applied in [§7(1)2(e)(iii)]. (Amended on January 28, 2009; April 21, 2010; February 22, 2013; December 19, 2018)

(2) Financial matters and accounting terminologies in this Part shall conform to the accounting standards under Article 5 of the Act on External Audit. (Amended on January 28, 2009; December 19, 2018)

(3) When applying the financial matters in this Part, in cases where the annual report for the latest fiscal year has not been submitted or the opinion of CPA auditor in the latest annual report is adverse opinion, disclaimer of opinion or qualified opinion due to the limit placed on the scope of audit, the financial statement at the end of the year immediately preceding the latest year shall be deemed to be the financial statement at the end of the latest year. (Amended on January 28, 2009)

(4) In applying this Part, the equity capital calculated in accordance with [§2(10)], the sales amount of the latest fiscal year (excluding the sales amount under [§7(1)2(e)(iii)]), the total assets, etc. at the end of the latest fiscal year, shall apply for the period from the day when three (3) months have elapsed since the end of each fiscal year to the end of three (3) months after the end of the next fiscal year. Provided that, in the case of a listed foreign corporation that is applied with Article 176(2) of the Enforcement Decree of the Act, it shall be the period from the day when four (4) months have elapsed since the end of each fiscal year to the end of four (4) months after the end of the next fiscal year. (Amended on December 23, 2005; January 28, 2009; April 18, 2012; February 22, 2013)

(5) When applying this Part to a KOSPI-stock-listed corporation whose equity capital is less than its capital stock as of the time of occurrence of the cause for reporting or disclosure, the capital stock shall be deemed as the equity capital. (Amended on December 23, 2005, January 28, 2009; December 18, 2009)

(6) Notwithstanding the provisions of paragraphs (1) and (2), in cases where a listed foreign corporation has prepared its financial statement in accordance with the international accounting standards (IAS) established by the International Accounting Standards Board or the generally accepted accounting principles in the United States of America (US GAAP) and has it audited according to the relevant laws of home country or the country where the company's stocks are listed, it may be based on the accounting standards/principles adopted for the preparation of the relevant financial statement. [December 23, 2005] (Amended on January 28, 2009)

(7) Notwithstanding paragraph (1), in the case of a KOSPI-stock-listed holding company or parent company, each of the following subparagraphs shall apply: (Amended on February 22,

2013; April 29, 2015)

1. For the cases noted in [§3(3)], [§7(1)2(e)(i)[Ⓐ] and (1)2(e)(ii)] and [§40(2)4(a)(i) and (2)4(b)], it shall include the separate financial statements under the K-IFRS (Korea-International Financial Reporting Standards) No. 1027 established by Korea Accounting Institute (hereinafter referred to as the “separate financial statements”);
2. The value or impairment loss per receivable stated in the financial statement as of the end of the latest fiscal year under [§7(1)2(b)(iv), (1)2(d)(i) or (1)2(d)(vi)] shall be based on the separate financial statements;
3. In the case of the sales amount noted in [§7(1)2(v)(i)[Ⓒ] and (1)2(v)(iii)[Ⓓ]] and [§40(2)4(a)(iii)], the separate financial statements shall be included; Provided that, this provision shall not apply to holding companies; and
4. In the case of total assets noted in [§8(1)] or [§16], it shall be based on the separate financial statements.

[February 22, 2013]

§4. Faithful Fulfillment of Disclosure Obligations and Responsibilities

- (1) In fulfilling the disclosure obligations under this Part, each KOSPI-stock-listed corporation shall report the relevant facts or details of decisions in a faithful and timely manner and shall fulfill the duty of care in order not to make any change or reversal of the details already reported. (Amended on January 28, 2009; December 28, 2016)
- (2) Each KOSPI-stock-listed corporation shall make sure that the details of corporate information are not leaked or disseminated in the securities market in the form of rumors or news, etc. before such information is publically disclosed pursuant to paragraph (1). (Amended on January 28, 2009)
- (3) For the matters arising from the violation of paragraphs (1) and (2) by a KOSPI-stock-listed corporation, the relevant corporation shall bear the responsibility. (Amended on January 28, 2009)

§5. [Deleted on January 28, 2009]

§6. Methods for Reporting and Document Submission

- (1) Each KOSPI-stock-listed corporation shall prepare the written documents about the matters to be reported pursuant to this Part and submit them to the Exchange as stipulated in the Enforcement Rules. Provided that, in cases where the submission is made electronically pursuant to Article 436 of the Act (hereinafter referred to as “electronic document”), the submission shall be made pursuant to Part III. (Amended on January 28, 2009; February 22, 2013)

(2) Upon receiving a report submitted by a KOSPI-stock-listed corporation pursuant to paragraph (1), the Exchange shall disclose the main contents of the report through the disclosure media specified in the Enforcement Rules (hereinafter referred to as “disclosure media”) without delay. Provided that, in the case of the KOSPI-stock-listed corporations specified in the Enforcement Rules (hereinafter referred to as the “corporations subject to verification procedure”) and the details of reports that are necessary for the protection of investors and are set forth in the Enforcement Rules, the disclosure thereof can be made after going through the verification procedure. (Amended on July 22, 2015)

CHAPTER II. DISCLOSURE OBLIGATIONS

Section 1. Reporting and Disclosure of Material Business Matters

§7. Material Business Matters

(1) When falling under any of the following cases, each KOSPI-stock-listed corporation shall report the details of the facts or decisions (referring to the resolutions of the board of directors or the decisions made by its representative director or other officers, major shareholders, etc. who have the de facto decision-making authority. In such cases, the resolutions of the board of directors shall include the decisions made by the committees within the board of directors prescribed in Article 393-2 of the Commercial Act; the same hereinafter) to the Exchange on the day when the cause for reporting has occurred. Provided that, the causes falling under subparagraphs 1(c), items (a)(vii), (b)(iv), (c)(iv) and (d)(iv) of subparagraph 2, and items (a)(i) and (b)(v) of subparagraph 3 shall be reported by the day following the day of occurrence. (Amended on April 15, 2009; July 1, 2009; December 18, 2009; April 21, 2010; June 15, 2011; November 4, 2011; April 18, 2012; February 22, 2013; September 11, 2013; April 29, 2015; July 22, 2015; December 30, 2015; December 28, 2016; December 19, 2018; November 24, 2021, December 7, 2022; November 13, 2024)

1. Cases where any of the following events or decisions concerning the businesses or production activities of the relevant KOSPI-stock-listed corporation has taken place:

(a) Suspension of the business equivalent to 5% (2.5% for large-sized corporations) or more of the sales of the latest fiscal year, or the complete or partial suspension of the core business (including the decision to suspend), or having been imposed of an administrative disposition concerning such suspension (including revocation or return of the business authorization, permission or license, and suspension of sales operation for the products corresponding thereto);

(b) Suspension of the transaction with a customer who accounts for 5% (2.5% for large-sized corporations) or more of the sales of the latest fiscal year;

(c) Conclusion of a single sales contract or supply contract equivalent to 5% (2.5% for large-sized corporations) or more of the sales of the latest fiscal year or termination of

such contract;

(d) Where a decision to recall, remove or etc. its products in an amount equivalent to 5% (2.5% for large-sized corporations) or more of the sales of the latest fiscal year has been made; and

(e) Suspension of production in a factory which produces 5% (2.5% for large-sized corporations) or more of the sales of the latest fiscal year or shut down of such factory.

(f) When any of the following facts arise in relation to a serious accident occurring at the relevant KOSPI-stock-listed corporation: [October 1, 2025]

(i) When the occurrence of a serious accident is reported to the Minister of Employment and Labor pursuant to Article 54, Paragraph 2 of the Occupational Safety and Health Act; [October 1, 2025]

(ii) When it is confirmed that criminal punishment has been imposed on the relevant corporation or its executives (including retired persons) for the occurrence of a serious industrial accident pursuant to Article 6 or 7 of the Serious Accidents Punishment Act; and [October 1, 2025]

(iii) When it is confirmed that criminal punishment has been imposed on the relevant corporation or its executives (including retired persons) for the occurrence of a serious civic accident pursuant to Article 10 or 11 of the Serious Accidents Punishment Act. [October 1, 2025]

2. Cases where any of the following events or decisions which bring about changes in the financial structure of the relevant KOSPI-stock-listed corporation has taken place:

(a) Where there has been any of the following events or decisions concerning the securities issued by the relevant KOSPI-stock-listed corporation:

(i) When a decision on capital increase or reduction has been made;

(ii) When a decision relating to the retirement of stocks has been made. In such cases, the matters on the stock retirement conducted for the capital reduction noted in (i) shall be reported pursuant to (i);

(iii) When a decision on acquisition or disposal (including conclusion, termination or extension of a trust contract, etc.) of treasury stocks has been made; and a decision to dispose the treasury stocks acquired through a trust contract in the markets other than the KOSPI Market has been made;

(iv) When a decision on a stock split or a reverse stock split (excluding the reverse stock split for capital reduction) prescribed in Articles 329-2 and 440 of the Commercial Act has been made;

(v) When a decision to convert par value stocks into non-par value stocks or vice versa pursuant to Article 329 of the Commercial Act has been made;

(vi) When it falls under any of the followings, with regard to the equity-related bonds (referring to the stock-related corporate bonds prescribed in Article 165-10(1) of the Act and the contingent bonds convertible into stocks of a bank prescribed in Article 33(1)3 of the Banking Act; the same hereinafter):

① When a decision on the issuance of convertible bonds, bonds with warrants or exchangeable bonds or DRs (including issuance of securities or certificates similar thereto in a foreign country) has been made;

② When a decision on the issuance of contingent capital securities [referring to the contingent capital securities prescribed in Article 165-11(1) of the Act and the contingent bonds under the provisions of Subparagraphs 2 through 4 of Article 33(1) of the Banking Act; the same hereinafter] has been made;

③ When the causes for conversion of contingent capital securities into stocks have occurred or the cause for exemption of obligation for redemption and interest payment of the contingent capital securities have occurred: or

④ When a decision on the acquisition of convertible bonds, bonds with warrants or exchangeable bonds before maturity or a decision on the sale of the relevant bonds acquired before maturity has been made.

(vii) When a KOSPI-stock-listed corporation, which plans to list or has already listed its stocks, etc. on an overseas exchange, falls under any of the followings:

① When a decision to list the stocks, etc. on an overseas exchange has been made; and the relevant stocks, etc. have been listed thereon;

② When the corporation, after having listed its stocks, etc. on an overseas exchange, has filed a periodic or timely reporting or disclosure of corporate information or has submitted a report or other relevant documents to the supervisory authority or the stock exchange of the relevant country. Provided that, this provision shall not apply to a case where the reporting or disclosure duplicate the matters that are reported, disclosed or submitted pursuant to this Part and the securities-related laws and regulations of Korea;

③ When the corporation has made a decision to delist the stocks, etc. listed on an overseas exchange, or the securities supervisory authority or the stock exchange of the relevant country has taken such measures as trade suspension, delisting, etc. (including the case where such measures were taken by the request of the relevant corporation) against the stocks, etc.; and the stocks, etc. have been delisted; or

④ When the corporation has been requested by the stock exchange of the relevant country to make an inquired disclosure.

(viii) When the relevant corporation has made a decision to delist its stocks; and

(ix) When it has been confirmed that the bills issued have been forged or altered.

(b) Where there has been any of the following events or decisions concerning the investment activities of the relevant KOSPI-stock-listed corporation:

(i) When a decision on a new facility investment, non-facility investment specified in the Enforcement Rules, expansion of facilities or establishment of a separate factory, each of which is equivalent to 10% (5% for large-sized corporations) or more of the equity capital has been made;

(ii) When a decision to acquire or dispose tangible assets (including real estate for leasing; the same hereinafter) worth 5% (2.5% for large-sized corporations) or more of the total assets of the latest fiscal year [including the acquisition or disposal through the specified money trusts under Subparagraph 1 of Article 103 of the Enforcement Decree of the Act or the privately placed funds under Article 9(19) of the Act (limited to the case where the relevant corporation exercises de facto influence over the management of assets); the same hereinafter for the acquisitions or disposals in (iii) of this Item] has been made;

(iii) When a decision to make an equity investment (referring to acquisition of stocks or investment securities issued by other corporations; the same hereinafter), to dispose the equity shares in contribution or to acquire or dispose equity-related bonds, in an amount of 5% (2.5% for large-sized corporations) or more of the equity capital, has been made. Provided that, this provision shall not apply to the case falling under any of the followings:

Ⓐ Case of an investment by way of tender offers. Provided that, in the case of a tender offer for the stocks issued by a foreign corporation pursuant to foreign laws, it shall be reported at the time when the registration statements of tender offer or other documents equivalent thereto are submitted in the relevant country; or

Ⓑ Case of an acquisition or disposal of trading securities (including disposal of equity investment or equity shares in contribution through exercise of the rights on collateral, etc.) by financial institutions (referring the institutions falling under any of the subparagraphs of Article 38 of the Act on the Establishment, etc. of Financial Services Commission).

(iv) When it is confirmed that an unlisted corporation (including the KOSDAQ-listed corporations), in which the relevant KOSPI-stock-listed corporation has made an investment in an amount (based on the value stated on the balance sheet as at the end of the latest fiscal year) equivalent to 5% (2.5% for large-sized corporations) or more of the equity capital, fell under any of items (b)(i) through (b)(iii) of subparagraph 3.

(c) Where there has been any of the following events or decisions with respect to the

claims or liabilities of the relevant KOSPI-stock-listed corporation:

- (i) When there has been a decision on increasing the short-term borrowings by an amount equivalent to 10% (5% for large-sized corporations) or more of its equity capital. In such cases, the short-term borrowings shall include the amount of corporate bonds with maturities less than one (1) year, which were issued by means other than a public offering, and exclude the amount borrowed to repay the existing short-term borrowings;
 - (ii) When a decision to take over or forgive a debt equivalent to 5% (2.5% for a large-sized corporation) or more of its equity capital has been made;
 - (iii) When a decision to provide a collateral (only in the case of providing a collateral for others; the same hereinafter) or debt guarantee (excluding the tax payment guarantees and performance guarantees such as bid bonds, performance bonds, maintenance bonds; the same hereinafter) equivalent to 5% (2.5% for large-sized corporations) or more of its equity capital. In such cases, the balance of debt guarantee or collateral provided per debtor as of the day when the relevant decision was made, or the cause of disclosure occurred shall also be reported;
 - (iv) When it is confirmed that a debtor falling under subparagraph 2(c)(iii) has fallen under any of subparagraphs 3(b)(i) through 3(b)(iii);
 - (v) When the corporation has failed to pay the principal and interest equivalent to 5% (2.5% for large-sized corporations) or more of equity capital in relation to the corporate bonds issued. In such cases, the amount to be reported shall be determined based on the cumulative amount, excluding the amount already reported, of the unpaid amount incurred in the relevant fiscal year;
 - (vi) When it has failed to pay the principal and interest equivalent to 5% (2.5% for large-sized corporations) or more of equity capital in relation to the loans obtained from the financial institutions under Article 21(2) of the Enforcement Decree of the Credit Information Use and Protection Act. In such cases, the amount to be reported shall be determined based on the cumulative amount, excluding the amount already reported, of the unpaid amount incurred in the relevant fiscal year; or
 - (vii) When there has been a decision to make an advance payment, cash provisional payment, cash loan or securities lending to other persons. In such cases, the loan to the employees (only in the case of the employee other than the largest shareholder, etc.) and employee stock ownership association shall be excluded.
- (d) Where there has been any of the following events or decisions with respect to the profits and losses of the relevant KOSPI-stock-listed corporation:
- (i) When any calamity occurred due to a natural disaster, war, upheaval or fire, etc. reaches or exceeds 5% (2.5% for large-sized corporations) or more of total assets at the end of the latest fiscal year (based on the amount stated on the balance sheet as at the end of the latest fiscal year);

- (ii) When it is confirmed that a fine, penalty or additional charge exceeding 5% (2.5% for large-sized corporations) of its capital stock has been imposed;
 - (iii) When it is confirmed that an officer or employee (including those who retired) are suspected of embezzlement or misappropriation and when the suspicion about such embezzlement or misappropriation has been found to be true. Provided that, for employees, etc. who are not officers, it shall be limited to the cases where the amount of embezzlement or misappropriation exceeds 5% (2.5% for large-sized corporations) of its equity capital;
 - (iv) When a loss (including the unrealized amount) of 5% (2.5% for large-sized corporations) or more of its equity capital has occurred from the trading of derivatives (excluding the hedging trades for which high level of risk hedging effect is expected according to the accounting standards). In such cases, the amount to be reported shall be calculated based on accumulated losses, excluding the amount already reported, of the loss incurred in the relevant fiscal year and in cases where there are multiple derivatives trades, the gains and losses shall be offset;
 - (v) When it is confirmed that the officers, etc. (including the retired officers) are suspected of a disguised payment in an amount equivalent to 5% (2.5% for large-sized corporations) of capital stock or when such suspicion has been found to be true; or
 - (vi) Where it is confirmed that the impairment loss (to be determined by aggregating the impairment losses per receivable, based on the accumulated amount for the relevant fiscal year) incurred from the receivables other than accounts receivables is 50% (25% for large-sized corporations) or more of equity capital. In such cases, the balance per receivable to be impaired as of the date of occurrence of the cause for disclosure shall be included in the reporting.
- (e) Where there has been any of the following events or decisions with respect to the settlement of accounts of the relevant KOSPI-stock-listed corporation:
- (i) When an audit report has been received from the CPA auditor pursuant to Article 23(1) of the Act on External Audit. In such cases, in the event that, according to the relevant audit report, any of the following facts has been confirmed, such fact shall be reported as well:
 - Ⓐ The fact that the CPA auditor's opinion is adverse, disclaimer of opinion or qualified opinion due to the limit placed on the scope of audit;
 - Ⓑ The fact that the equity capital of the latest fiscal year has been impaired by 50% or more of the capital stock (in the case of KOSPI-stock-listed parent companies or holding companies, it shall be based on the total capital excluding non-controlling shares; the same hereinafter). In such cases, if the entire capital is impaired, such fact shall be separately stated; or
 - Ⓒ The fact that the sales amount of the latest fiscal year that was less than KRW

5 billion.

(ii) When the CPA auditor's opinion in the semi-annual review report is adverse or disclaimer of opinion;

(iii) When there was a fact or decision that falls under any of the followings as a result of settlement of account for the latest fiscal year. In such cases, the reporting shall be made prior to the announcement or notification of the call of the general shareholders' meeting for adoption of settled account, and the sales amount, operating income/loss, net income/loss, and the status of total assets, debts and capital shall be reported as well;

Ⓐ The fact that the sales amount, operating income/loss, or net income/loss for the latest fiscal year has increased or decreased by 30% (15% for large-sized corporations) or more compared to the immediately preceding fiscal year; or

Ⓑ Case of falling under (i)Ⓐ and (i)Ⓒ.

(iv) When a decision on stock dividends has been made. In such cases, the planned details shall be reported by 10 days before the record date;

(v) When a decision on cash dividends or dividends in kind (including the quarterly dividends prescribed in Article 165-12 of the Act and the interim dividends prescribed in Article 462-3 of the Commercial Act) has been made and when a decision on the closing period of shareholders register or the record date has been made for these dividends (provided that, this provision shall not apply to the cases where a specific date is set as the record date for dividends in the articles of incorporation). In such cases, the report on the relevant dividends shall be made on the basis of the market price-dividends ratio specified in the Enforcement Rules, without indicating the par value-dividends ratios;

(vi) When falling under any of the followings with respect to the violation of the accounting standards:

Ⓐ When it is confirmed that the relevant corporation or its officers or employees (including those who retired) have been informed or referred to the prosecutors' office by the Securities and Futures Commission pursuant to the Regulation on External Audit and Accounting, etc. and the outcome thereof was confirmed;

Ⓑ When it is confirmed that the relevant corporation or its officers or employees (including those who retired) have been charged by the prosecutors' office for the violation of the accounting standards or the outcome of such charge has been confirmed. Provided that, this provision shall not apply to the case where the report has been filed according to Ⓐ; or

Ⓒ When it is confirmed that the Securities and Futures Commission has made a resolution to recommend the relevant KOSDAQ-listed corporation to dismiss its

officers pursuant to the Regulation on External Audit and Accounting, etc.

(vii) [Deleted on February 22, 2013]

3. Cases where there has been any of the following events or decisions with respect to the corporate management activities of the relevant KOSPI-stock-listed corporation:

(a) Where there has been an event or decision falling under any of the followings with respect to the corporate governance or corporate restructuring of the relevant KOSPI-stock-listed corporation:

(i) When the fact that the largest shareholder has been changed is confirmed;

(ii) [Deleted on July 22, 2015]

(iii) When a subsidiary of a KOSPI-stock-listed holding company has newly been included or excluded;

(iv) Where there has been a decision on swap or transfer of stocks under Sub-section 2 and Sub-section 3 under Section II, Chapter IV of Part III of the Commercial Act;

(v) Where a decision on the matters prescribed in Articles 374, 522, 530-2 and 530-12 of the Commercial Act and Subparagraphs 1 through 3 of Article 171(2) of the Enforcement Decree of the Act has been made; or

(vi) Where a decision on a simplified merger prescribed in Article 527-2 of the Commercial Act or a small-scale merger prescribed in Article 527-3 of the same Act has been made.

(b) Where there has been an event or decision with respect to the existence of the relevant KOSPI-stock-listed corporation, which falls under any of the followings:

(i) Where a note or check issued by the corporation has been dishonored or its current account transactions with a bank have been suspended or banned;

(ii) Case of falling under any of the followings pursuant to the Debtor Rehabilitation and Bankruptcy Act:

① Where an application for commencement, conclusion or discontinuation of rehabilitation procedures has been filed, and the court has notified of its decision on commencement, conclusion or discontinuation of rehabilitation procedures, dismissal of an application for commencement of rehabilitation procedures, cancellation of the decision on commencement of rehabilitation procedures, approval or disapproval of the rehabilitation plan, etc.; or

② Where an application for bankruptcy has been filed or the court has notified of its decision on declaration of bankruptcy or dismissal of an application for bankruptcy.

(iii) Where any of the grounds for dissolution under Article 517 of the Commercial Act or other Acts has occurred. Provided that, this provision shall not apply to the case of falling under the grounds for dissolution prescribed in Subparagraph 4 of Article 227 and Subparagraph 1-2 of Article 517 of the Commercial Act;

(iv) Where it is confirmed that the correspondent bank or the financial creditor has decided to commence, suspend or cancel the management control or joint management of the corporation; or the corporation has requested for such management or cancelled such request; or

(v) Where an agreement has been entered into with the principal creditor bank or the council of financial creditors for the purpose of implementing the plan for management normalization.

(vi) [Deleted on July 22, 2015]

(c) Where it is confirmed that any of the following legal proceedings has been brought or filed against the relevant KOSPI-stock-listed corporation, or that the court has ruled or given its decision on such legal proceedings. Provided that, in the case of (iv), when the fact about the filing of lawsuit (including an appeal to a higher court) and application for permission to proceed with legal proceedings; the court ruling on the application for permission; and filing of an application for permission to withdraw a lawsuit (including the withdraw of an appeal) or renounce the composition and claim (including the waiving the appeal rights) and the court decision and ruling thereof has been confirmed:

(i) A lawsuit filed with respect to the validity of issuance of the stocks listed or to be listed which were issued by the corporation, the alteration of rights of such stocks and the forgery or alteration of such stocks;

(ii) A lawsuit, etc. in which the amount of the claim is 5% (2.5% for large-sized corporations) or more of its equity capital;

(iii) Minority shareholder's application for the court permission to call general shareholders' meeting for the appointment or dismissal of officers; a lawsuit filed for nullification or revocation of the resolution of the general shareholders' meeting on the appointment and dismissal of officers; or a lawsuit filed in relation to the management disputes concerning the appointment or dismissal of officers or the performance of duties, including an application for the provisional disposition for suspension of the performance of duties of officers, etc.; or

(iv) A lawsuit filed pursuant to the Securities-related Class Action Act;

(d) When there has been a resolution of the board of directors or the general shareholders' meeting to call a general shareholders' meeting. In such cases, the matters that may have considerable influence on investment decisions, including changes in business objectives, appointment or dismissal of outside directors, appointment or dismissal of the auditor (including audit committee members),

adoption or abolishment of the cumulative voting system, the ratio of votes in favor and against (including abstentions and invalid votes) for each agenda item at the general shareholders' meeting, etc. shall separately be stated. (Amended on January 28, 2026)

4. Besides the cases noted in subparagraphs 1 through 3, the case where there have been events or decisions concerning the operation, production activities, financial structure, or business activities, etc. of the relevant KOSPI-stock-listed corporation which have or may have a considerable influence on stock prices or investors' investment decisions. In such cases, the matters specified in [§28] shall be excluded.

(2) Notwithstanding paragraph (1), the provisions of items (c)(ii) through (c)(iv) of paragraph (1)2 shall not apply to the KOSPI-stock-listed corporations which fall under any one of the following subparagraphs: (Amended on December 1, 2010; July 22, 2015)

1. A bank under the Banking Act;
2. An investment trader or an investment broker under the Act;
3. An insurance company under the Insurance Business Act;
4. A merchant bank under the Act;
5. A mutual savings bank under the Mutual Savings Banks Act;
6. A lessor established pursuant to the Specialized Credit Finance Business Act;
7. A new technology venture capitalist registered pursuant to the Specialized Credit Finance Business Act;
8. A public purpose corporation provided for in Article 152(3) of the Act; or
9. A corporation undergoing the rehabilitation procedures pursuant to the Debtor Rehabilitation and Bankruptcy Act.

(3) The detailed guidelines for determining whether the stock price or investors' investment decisions mentioned in paragraph (1)4 are significantly affected shall be set forth in the Enforcement Rules. [December 30, 2015]

(Wholly amended on January 28, 2009)

§8. Material Business Matters of Subsidiaries

(1) A KOSPI-stock-listed company, which is a holding company, shall report, if a subsidiary [limited to a case where the book value (in the case of a subsidiary admitted during the fiscal year, it shall be the acquisition cost) of the shares in the relevant subsidiary, as reflected in the financial statements at the end of the latest fiscal year, is 10% or more of the holding company's total assets at the end of the latest fiscal year] falls under any of subparagraphs [(excluding items (iv) and (v) of subparagraph 2(a) and item (i) of subparagraph 3(a) and (d)] of [§7(1)], the details of such fact or decision to the Exchange by the day following the date

on which the cause for reporting occurs. Provided that if a subsidiary falls under any of items (i) through (iii) of subparagraph 1(f) and items (i) through (iii) of subparagraph 3(b) of [§7(1)], the holding company shall report on the day which the cause for reporting arises. (Amended on January 28, 2009; October 1, 2025)

(2) In cases where a subsidiary of a KOSPI-stock-listed company, other than the subsidiary referred to in paragraph (1), falls under any of items (i) through (iii) of subparagraph 1(f) of [§7(1)], the holding company shall report the details of such fact or decision to the Exchange on the day when the cause for reporting has occurred, and if the relevant subsidiary falls under any of items (i) through (iii) of subparagraph 3(b) of [§7(1)], the holding company shall report the details by the day following the date on which the cause for reporting occurs. (Amended on January 28, 2009; October 1, 2025)

(3) In cases where a subsidiary of a holding company is a listed corporation and the relevant holding company has submitted a written request in the manner stipulated in the Enforcement Rules, it shall be deemed that the holding company has made the reporting pursuant to paragraphs (1) and (2) if the relevant subsidiary submits the reports noted in each subparagraph of [§7(1)]. [April 21, 2010]

§8-2. Material Business Matters of Consolidated Subsidiaries

(1) In cases where a consolidated subsidiary of a KOSPI-stock-listed corporation which is the parent company falls under any of the following subparagraphs, the relevant listed parent company shall report to the Exchange the details of the relevant fact or decision by the day following the day when the cause for reporting has occurred. Provided that, in cases where a consolidated subsidiary located in Korea falls under Subparagraphs 1, 3 and 4 of Article 161(1) of the Act, the reporting shall be made on the day when the cause for reporting has occurred. (Amended on September 11, 2013)

1. Cases where the principal consolidated subsidiary falls under Subparagraph 1, 3, 4 or 6 of Article 161(1) of the Act and Subparagraph 1 or 3 of Article 171(3) of the Enforcement Decree of the Act;

2. As a case of falling under Article 161(1)2 of the Act, the case where the sales amount of the suspended business of the consolidated subsidiary is at least 5% (2.5% for large-sized corporations) of the sales amount of the parent company for the latest fiscal year;

3. As a case of falling under Article 161(1)5 of the Act, the case where the amount of capital increase or reduction of the consolidated subsidiary is at least 5% (2.5% for large-sized corporations) of the equity capital of the parent company as of the end of the latest fiscal year;

4. As a case of falling under Article 161(1)7 of the Act, the case where it falls under any of the following items. Provided that, the requirements for an essential acquisition or transfer shall be the one noted in each of the following items:

- (a) Where the amount of assets (referring to the book value or the transaction amount, whichever is larger; the same hereinafter in subparagraphs 4(d) and 7) of the business

division to be acquired or transferred by the consolidated subsidiary is at least 5% (2.5% for large-sized corporations) of the total amount of assets of the parent company as of the end of the latest fiscal year;

(b) Where the sales amount of the business division to be acquired or transferred by the consolidated subsidiary is at least 5% (2.5% for large-sized corporations) of the sales amount of the parent company as of the end of the latest fiscal year;

(c) Where the amount of liabilities to be assumed by the consolidated subsidiary following acquisition of the business is at least 5% (2.5% for large-sized corporations) of the total amount of liabilities of the parent company as of the end of the latest fiscal year; and

(d) Where the amount of assets to be acquired or transferred by the consolidated subsidiary is at least 5% (2.5% for large-sized corporations) of the total amount of assets of the parent company as of the end of the latest fiscal year.

5. As a case falling under Article 161(1)9 of the Act, the case where the consolidated subsidiary has made a decision on the issuance of exchangeable bonds that are eligible to be exchanged with the stocks of the parent company. (Amended on October 1, 2025)

6. As a case falling under Article 171(3)2 of the Enforcement Decree of the Act, the case where the amount of claims brought in respect to the lawsuit filed against the consolidated subsidiary is at least 5% (2.5% for large-sized corporations) of the total assets of the parent company as of the end of the latest fiscal year. (Amended on October 1, 2025)

7. As a case falling under Article 171(3)5 of the Enforcement Decree of the Act, the case where the amount of assets to be transferred by the consolidated subsidiary is at least 5% (2.5% for large-sized corporations) of the total amount of assets of the parent company as of the end of the latest fiscal year.

8. Cases where a consolidated subsidiary located in Korea falls under any of the items (i) to (iii) of [§7(1)1(f)]. [October 1, 2025]

(2) In cases where the matters to be reported under each subparagraph (excluding subparagraph 8) of paragraph (1) duplicate those noted in any of the following subparagraphs, a KOSPI-stock-listed corporation, which is the parent company, shall make the reporting pursuant to paragraph (1): (Amended on September 11, 2013; October 1, 2025)

1. The matters to be reported noted in [§8]. Provided that, in cases where an identical matter has been reported pursuant to [§8(3)], it shall be deemed that the reporting was made pursuant to paragraph (1); and

2. The matters to be reported noted in [§7(1)2b(iv) or (1)2c(iv)].

(3) In the case where a KOSPI-stock-listed corporation that is both a holding company and a parent company reports the matters stipulated in paragraph (1)8 in accordance with [§8], it shall be deemed to have reported in accordance with paragraph (1). [October 1, 2025]

[February 22, 2013]

§9. Material Business Matters of Real Estate Investment Companies

(1) In cases where a KOSPI-stock-listed real estate investment company falls under any of the following subparagraphs, in addition to falling under any subparagraph of [§7(1)], the relevant real estate investment company shall report the details of the relevant event or decision to the Exchange by the day following the date of occurrence of the cause for reporting: (Amended on December 23, 2005; January 28, 2009)

1. When there has been a decision on operation of real estate properties such as acquisition, disposal, etc. thereof;
2. When there has been a decision on acquisition or disposal of securities worth at least 10% of the total amount of assets;
3. When there has been a decision on borrowings;
4. When entering into a contract with an asset custody organization, an asset management company and a real estate investment advisory company, etc., or amending or terminating such contracts;
5. When the counterparty of a contract entered into pursuant to subparagraph 4 falls under any of items (b)(i) through (b)(iii) of [§7(1)3];
6. When there has been a decision on distribution of money;
7. When there has been a decision on investment or operation in real estate development projects referred to in Subparagraph 4 of Article 2 of the Real Estate Investment Company Act;
8. [Deleted on December 23, 2005]
9. When there has been a decision on restricting the purchase of stocks or extending the period of existence; and
10. When any measures for management improvement have been imposed by the supervisory authority.

(2) When the matters to be reported under paragraph (1) overlap with the matters to be disclosed under [§7(1)], a KOSPI-stock-listed real estate investment company shall make the reporting pursuant to paragraph (1). (Amended on December 23, 2005; January 28, 2009)

§10. Material Business Matters of Ship Investment Companies

(1) When a KOSPI-stock-listed ship investment company falls under any of the following

subparagraphs, in addition to falling under any subparagraph of [§7(1)] (including the cases where the subsidiaries under Article 3(2) of the Ship Investment Company Act fall under subparagraphs 7 through 13), the relevant ship investment company shall report the details of the relevant fact or decision to the Exchange by the day following the date of occurrence of the cause for reporting: (Amended on January 28, 2009; February 22, 2013)

1. When a change to the authorization of ship investment business is obtained from the government;
2. When there has been a decision on extension of the period of existence;
3. When it was confirmed that a public hearing on revocation of the authorization of ship investment business or the business permission of the ship management company has commenced;
4. When the authorization of ship investment business or the business permission of the ship management company was revoked;
5. When there has been a decision to establish or dissolve a subsidiary;
6. When the facts falling under any of [§7(1)3(b)(i)] through [§7(1)3(b)(iii)] or others equivalent thereto have occurred to a subsidiary;
7. When a ship was delivered;
8. When an agreement for construction, sale or charter of a ship has been entered into or such agreement has been amended or terminated before the expiry date;
9. When entering into a business trust agreement with a ship management company or asset holding company, or amending or terminating such contracts;
10. When a ship management company, asset holding company or ship operation company falls under any of [§7(1)3(b)(i)] through [§7(1)3(b)(iii)];
11. When there has been a decision on borrowing or issuance of corporate bonds worth more than the amount of the equity capital (referring to the accumulated amount for the relevant fiscal year, excluding the amount already reported);
12. When it was found that the inspection by the ship inspection institution has confirmed that a ship owned by the ship investment company cannot be operated;
13. When it was confirmed that a ship owned by the ship investment company could not be operated due to an accident such as ships, pollution, etc.; and
14. When there has been a decision on distribution of profits.

(2) When the matters to be reported under paragraph (1) overlap with the matters to be disclosed under [§7(1)], a KOSPI-stock-listed ship investment company shall make the reporting pursuant to paragraph (1). (Amended on January 28, 2009)

§11. Material Business Matters of Special Purpose Acquisition Companies

(1) When a KOSPI-stock-listed special purpose acquisition company falls under any of the following subparagraphs, in addition to falling under any of subparagraphs of [§7(1)], the relevant special purpose acquisition company shall report the details of the relevant event or decision to the Exchange on the day when the cause of reporting has occurred. Provided that, the event or decision noted in subparagraphs 3 and 5 shall be reported by the day following the date of occurrence of the cause of reporting.

1. When there has been a decision on amendment of the articles of incorporation;
2. When there has been a decision on appointment or dismissal of officers;
3. When an officer resigns;
4. When, after a decision on merger has been made, the relevant decision is cancelled or denied;
5. When the details of an agreement for deposit/trust of funds entered into with a securities finance company or trust business entity has been amended or the deposit/trust ratio of funds has been changed; and
6. When an event that the fund deposited or entrusted is withdrawn;

(2) In cases where the matters to be reported under paragraph (1) overlap with the matters to be disclosed under [§7(1)], the KOSPI-stock-listed special purpose acquisition company shall file the report according to [§7(1)], and in cases where the matters to be reported under [§7(1)] fall under each of the following subparagraphs, such fact shall be included in the reporting: (Amended on November 4, 2011; February 22, 2013; August 25, 2021; November 24, 2021)

1. Case of falling under each of the followings when reporting pursuant to [§7(1)3(a)(v)] subsequent to making a decision to merge with a stock-listed corporation prescribed in Article 9(15)3 of the Act (hereinafter referred to as the “stock-listed corporation”):
 - (a) Where the merger value or the total amount of assets stated in the balance sheet as of the end of the latest fiscal year is less than 80/100 of the amount deposited or entrusted in the securities finance company or the trust business entity;
 - (b) Where the stock-listed corporation is designated as an administrative issue under [§47] of the Listing Regulation and [§53] of the KOSDAQ Market Listing Regulation;
 - (c) Where the stock-listed corporation has a special interest in the relevant KOSPI-stock-listed special purpose acquisition company and the merger is restricted pursuant to item 8(a)(iv) of [§72(2)] of the Listing Regulation; and

(d) Case of establishing a new company as a result of a merger.

2. Case of falling under each of the followings when reporting pursuant to [§7(1)3(d)] subsequent to adopting a resolution at the general meeting of shareholders held for the approval of the merger under Article [§522] of the Commercial Act:

(a) Where disposal of the stocks by the management, etc. is restricted for a specified period of time after the merger;

(b) Where the shareholders, etc. as of the date of application for listing eligibility review under [§67] of the Listing Regulation (hereinafter referred to as the “shareholders, etc. as of the application date for listing eligibility review) exercise the voting rights under Article 522 of the Commercial Act, or in order not to influence the outcome of voting rights exercised by the number of shares, which is obtained by subtracting the number of shares held by the shareholders as of the application date for listing eligibility review from the number of shares participated (including the number of shares used written ballot) in the relevant general meeting of shareholders, by delegating the rights to the Korea Securities Depository, do not exercise the voting rights according to the ratio of “for” and “against” (including the number of abstention and invalid);

(c) Where the shareholders, etc. as of the application date for listing eligibility review has exercised the appraisal rights under Article 522-3 of the Commercial Act; and

(d) Case of falling under items (a) through (d) under subparagraph 1.

[December 18, 2009]

Section 2. Inquired Disclosure

§12. Matters subject to Inquired Disclosure

(1) With regard to the matters specified in [§7] through [§11], [§15], [§16] and [§28] or other matters equivalent thereto, the Exchange may request a KOSPI-stock-listed corporation to make an inquired disclosure in order to verify the rumors and news specified in the Enforcement Rules (hereinafter referred to as “rumors, etc.”), and the KOSPI-stock-listed corporation which has received the request to make an inquired disclosure shall respond to such request on the same day if the request was made in the morning; or by the morning of the next day (by the next day in the case of receiving the request for inquired disclosure for the reasons mentioned in each subparagraph of [§40(2)]) if the request was made in the afternoon. Provided that, if the substance of the rumors, etc. is about the matter that was disclosed by the relevant corporation within the last one (1) month {three (3) months for the matters under [§7(1)3(a)(i), (v) & (vi)] or others equivalent thereto}, the Exchange may not make the request for inquired disclosure. (Amended on December 23, 2005; January 28, 2009; December 18, 2009; December 1, 2010)

(2) Notwithstanding paragraph (1), even though there are no rumors, etc., when the price or trading volume of stock issued by a KOSPI-stock-listed corporation meets the criteria separately established by the Exchange, the Exchange may request the relevant corporation to make an inquired disclosure to confirm the presence or absence of any material information (the information about the matters stipulated in [§7] through [§11], [§15], [§16] and [§28]), and the KOSPI-stock-listed corporation that has received a request to make an inquired disclosure shall respond to such request by the day following the day when the request was received. Provided that, in cases where the price or trading volume of the stocks, etc. of the KOSPI-stock-listed corporation once again meets the criteria under the provisions of the main sentence within fifteen (15) days from the date of the most recent request for inquired disclosure under the provisions of the main sentence, the Exchange may not make the request for inquired disclosure. (Amended on December 23, 2005; January 28, 2009; December 18, 2009; April 21, 2010)

(3) In cases where a KOSPI-stock-listed corporation falls under any of the following cases, the provisions of the main sentence of paragraphs (1) and (2) may not apply: (Amended on January 28, 2009)

1. Case where it is inevitable by other laws and statutes, regulations, etc.; and
2. Case where natural disaster, warfare, disturbance, sudden and notable change in economic conditions, and other incidents similar thereto have occurred.

§13. Methods of Requesting Inquired Disclosure, etc.

(1) The Exchange shall make the request for inquired disclosure in accordance with the methods stipulated in the Enforcement Rules to the representative director, the disclosure officer or disclosure staff of a KOSPI-stock-listed corporation under [§88] and make public the fact about such request for inquired disclosure and the details thereof through its disclosure media.

(2) In cases where it is necessary as request for inquired disclosure made pursuant to paragraph (1) is related to the matters specified in [§7(1)3(a)(i)] or [§7(1)3(a)(v)], a KOSPI-stock-listed corporation shall make the inquired disclosure after obtaining the confirmation of the largest shareholder, etc.

§14. Re-disclosure of Interim Disclosure

(1) In cases where a KOSPI-stock-listed corporation has disclosed that it is in the process of making a decision on a matter inquired pursuant to [§12] (hereinafter referred to as the "interim disclosure"), the relevant corporation shall re-disclose details of the final decision or the status of progress with respect to the interim disclosure, within one (1) month from the date of relevant interim disclosure. Provided that, if it is deemed practically difficult to make the re-disclosure of the final decision or the progress within one (1) month from the date of the interim disclosure, the Exchange may have the relevant KOSPI-stock-listed corporation make the re-disclosure within the period specified in the interim disclosure. (Amended on January 28, 2009)

(2) When making a re-disclosure of the interim disclosure pursuant to paragraph (1), it shall include the detailed description of the relevant decision-making process.

Section 3. Fair Disclosure

§15. Information subject to Fair Disclosure, etc.

(1) When the fair disclosure information provider of a KOSPI-stock-listed corporation selectively releases the matters falling under any of the following subparagraphs (hereinafter referred to as the “information subject to fair disclosure”) to a specific receiver of fair disclosure information, the relevant corporation shall notify the Exchange of such fact and the details of the information released: (Amended on December 23, 2005; May 11, 2007; January 28, 2009; December 18, 2009)

1. Future business plans or management plans;
2. Projections or predictions of sales, operating income (losses), profits (losses) before taxes from continuing operations or net income (losses);
3. Business performance such as sales, operating income (losses), profits (losses) before taxed from continuing operations or net income (losses) related to the annual report, semi-annual report and quarterly report (hereinafter referred to as “annual reports, etc.”) that are released before submitting the annual reports, etc. pursuant to [§21]; and
4. From among the matters related to those set forth in [§7] through [§11], the matters for which the reporting deadlines have not yet passed.

(2) “Fair disclosure information provider” mentioned in this Part shall refer to the person falling under any of the following subparagraphs: (Amended on January 28, 2009)

1. Relevant KOSPI-stock-listed corporations and their agents;
2. Executive officers of a relevant KOSPI-stock-listed corporation (including directors, auditors or any persons who are virtually equivalent thereto; the same hereinafter in this Article); and
3. Employees of a relevant KOSPI-stock-listed corporation who have access to the information subject to fair disclosure (referring to the staff-members of a department that manages the matters concerning the information subject to fair disclosure or of a department that is responsible for disclosure).

(3) “Receivers of faire disclosure information” mentioned in this Part shall refer to the person falling under any of the following subparagraphs: (Amended on May 11, 2007; January 28, 2009; December 1, 2010; February 22, 2013)

1. Investment traders, investment brokers, investment companies, collective investment business entities, investment advisory business entities and discretionary investment business entities prescribed in the Act and their executive officers and employees, and persons who are in the relationship of delegation or in partnership with them;
2. Professional investors {excluding those specified in paragraph (1)} and their executive officers and employees;
3. Foreign professional investors who are engaged in the same or similar businesses of the businesses of the entities under subparagraphs 1 and 2, and their executive officers and employees;
4. Broadcasting business operators under the Broadcasting Act and news agencies such as newspapers and communications under the Act on the Promotion of Newspapers, etc. (including domestic and foreign corporations that conduct the same or similar businesses) and their executive officers and employees;
5. Operators of internet securities information sites that utilize the information and communications networks prescribed in the Act on Promotion of Information and Communications Network Utilization and Information Protection, Etc. and their executive officers and employees;
6. Holders of stocks of a KOSPI-stock-listed corporation, who are expected to buy or sell the relevant stocks by exploiting the information subject to fair disclosure; and
7. Persons who are equivalent to those noted in subparagraphs 1 through 6 and specified by the Exchange.

(4) The notification under paragraph (1) shall be made before the information is provided to the receivers of fair disclosure information. Provided that, in cases where such information was released due to a minor negligence or an error on the part of the fair disclosure information provider, such fact shall be notified on the day of occurrence, and in cases where it is substantiated that such release came about without knowledge of the officers of the relevant KOSPI-stock-listed corporation, it may be notified on the day when such fact became known. (Amended on January 28, 2009)

§16. Information of Subsidiaries subject to Fair Disclosure

In cases where the fair disclosure information provider of a KOSPI-stock-listed holding company provides the information subject to fair disclosure of its subsidiary to the specific receivers of fair disclosure information, the relevant listed holding company shall notify the Exchange of such fact pursuant to [§15] and [§17]. In such cases, the scope of subsidiaries shall be those subsidiaries of which the value of stocks held by the holding company as stated in the financial statement of the latest fiscal year (In cases where the subsidiary was included during the fiscal year, it shall be the acquisition price) is at least 10% of the total amount of assets of the holding company at the end of the latest fiscal year. (Amended on January 28, 2009)

§17. Notifying Methods

(1) In cases where the matters to be notified pursuant to [§15(1)4] overlap with the matters to be disclosed under the provisions of [§7] through [§11], KOSPI-stock-listed corporations shall make the notification in accordance with the relevant provisions of [§7] through [§11]. Provided that, in such cases, the provisions of [§15(4)] shall apply with respect to the deadline of such notification. (Amended on January 28, 2009; December 18, 2009)

(2) Notwithstanding [§6], in cases where the volume of the notification under [§15] or [§16] are extensive, the Exchange may request the relevant KOSPI-stock-listed corporation to notify a summary of the details and post such summary and the original document on the website, etc. of the relevant corporation. (Amended on January 28, 2009)

§18. Exceptions in Applying Fair Disclosure Obligations

Notwithstanding [§15] and [§16], in the case of falling under any of the following subparagraphs, other provisions of this Section shall not apply: (Amended on January 28, 2009; December 1, 2010; September 11, 2013)

1. Case where a fair disclosure information provider supplies the information subject to fair disclosure to the persons specified in [§15(3)4] in response to a coverage for news reporting; and
2. Case where a fair disclosure information provider supplies the information subject to fair disclosure to any of following persons:
 - (a) Any person, such as lawyer and CPA, who is obligated to keep confidentiality in performing the responsibilities delegated to him/her in accordance with the agreement entered into with the relevant KOSPI-stock-listed corporation;
 - (b) Any person who has clearly consented to keeping confidentiality of the information provided as a part of legitimate and routine duties;
 - (c) Any person who has obtained the license for credit rating businesses issued by the Financial Services Commission pursuant to Article 335-3 of the Act; or
 - (d) Any other persons who are equivalent to those specified in items (a) through (c) and are determined by the Exchange.

§19. Relationship with other Disclosure Obligations

The fair disclosure obligations set forth in this Section shall not affect other disclosure obligations stipulated in this Regulation. (Amended on January 28, 2009)

§20. Detailed Matters

With regard to [§15] through [§19], the detailed matters necessary for operation of the fair

disclosure system shall separately be stipulated by the Exchange. (Amended on January 28, 2009)

Section 4. Submission, Etc. of Annual Reports, Etc.

§21. Submission of Annual Reports, etc.

(1) KOSPI-stock-listed corporations shall submit to the Exchange the annual reports, etc. pursuant to Articles 159, 160 and 165 of the Act by the statutory deadlines for submission. (Amended on January 28, 2009)

(2) [Deleted on February 22, 2013]

§22. [Deleted on January 28, 2009]

§23. [Deleted on September 12, 2008]

§24. [Deleted on January 28, 2009]

§24-2. Disclosure of Reports on Corporate Governance

(1) A KOSPI-stock-listed corporation shall prepare and submit a report on corporate governance to the Exchange by May 31 of each year, describing on the status of compliance with the core principles of corporate governance under [Annex 1] and, if applicable, the reasons, etc. for non-compliance with the core principles. Provided that, this provision shall not apply to the cases where an annual report on corporate governance is submitted to the Exchange pursuant to paragraph (3). (Amended on November 24, 2021; July 9, 2025)

(2) In cases where a report on corporate governance submitted pursuant to paragraph (1) is incorrectly stated or omitted the material matters, the Exchange may request to correct the report on corporate governance and submit the corrected report, the relevant KOSPI-stock-listed corporation shall make the revision and submission within the period set by the Exchange. In such cases, the Exchange may disclose the matters relating to the request for corrective reporting through its disclosure media, etc.

(3) Any KOSPI-stock-listed corporation that is a financial company under Subparagraph 1 of Article 2 of the Act on Corporate Governance of Financial Companies may submit the annual report on corporate governance disclosed pursuant to Article 5(4) of the Regulations on Supervision of Corporate Governance of Financial Companies to the Exchange within the period set forth in the main sentence of paragraph (1).

(4) The matters necessary with regard to the description, submission and request for corrective reporting of the report on corporate governance under paragraphs (1) and (2) shall be stipulated in the Enforcement Rules.

[December 19, 2018]

Section 5. Disclosure by Listed Foreign Corporations

§25. Matters to be disclosed, etc.

(1) In cases where any of the following events has occurred, a listed foreign corporation shall report to the Exchange the details of such event on the day when the ground for reporting has occurred [in the case of reporting to the exchange in home country (including the exchange in a third country, if the corporation is listed on the exchange in the third country; the same hereinafter), it shall be reported to the Exchange and the exchange in the home country at the same time]. In such cases, the deadline for the reporting noted in subparagraph 1 shall apply with the deadline of the relevant matter to be disclosed, but this provision shall not apply to the case where the reporting to the exchange in the home country is made before the reporting deadlines noted in subparagraph 1. (Amended on December 23, 2005; January 28, 2009; November 4, 2011; February 22, 2013; July 22, 2015)

1. Case of the matters specified in the provisions of [§7], [§8], [§8-2] and [§28]. In such cases, in applying the provisions of [§8(1)], the scope of subsidiaries for which the foreign holding company is required to make reporting shall be the subsidiaries of which the total amount of assets at the end of the latest fiscal year is at least 10% of the total amount of assets of the foreign holding company at the end of the latest fiscal year;
2. Case of the matters notified or reported to a stock exchange of the home country for the purpose of providing the information necessary for the investors' investment decisions;
3. Case where there have been any amendments in the statutes of the home country, which has a significant effect on the relevant listed foreign corporation or its shareholders, including restrictions on transfer of shares, nationalization of the listed foreign corporation, etc.;
4. Case where an action such as tender offer or stabilization operation for the stocks, etc. issued by the listed foreign corporation has been taken in the home country.
5. Case where the relevant listed foreign corporation has been imposed of disciplinary measures by the securities related authority or the exchange in the home country for violation of related statutes, or where it was imposed of such measures as trading suspension or resumption, and delisting, etc. (including the case where the relevant corporation has requested such measures);
6. Case where a request for inquired disclosure has been received from the exchange in the home country;
7. Cases where there has been a decision on acquisition or disposal of DRs of the relevant listed foreign corporation that are listed on the Exchange;

8. In cases where a listed foreign holding company and its subsidiary (limited to the corporation in which the foreign holding company invested; the same hereinafter) have different bases of incorporation and the subsidiary has received measures of restricting the remittance of foreign currency to the listed foreign holding company or other measures (including the case where the details of the measure are changed) equivalent thereto from the government of the home country; and

9. Other matters deemed necessary by the Exchange.

(2) In applying [§12] to the listed foreign corporations, the matters subject to inquired disclosure about the rumors, etc. shall be the matters set forth in paragraph (1) or the matters equivalent thereto, and the listed foreign corporation that has received the request for inquired disclosure from the Exchange shall respond to such request by the day following the day when the request was received. Provided that, the scope of news to be collected may separately be specified in the Enforcement Rules. (Amended on December 23, 2005; January 28, 2009)

(3) The reporting under paragraphs (1) and (2) shall be made in Korean language. Provided that, when the Exchange acknowledges that the relevant listed foreign corporation cannot make the reporting in Korean due to an unavoidable cause, the relevant listed foreign corporation may make the reporting in English and file the report in Korean without delay when the relevant cause is resolved. (Amended on January 28, 2009)

(4) In making the reporting under paragraphs (1) and (2), the currency unit shall be recorded both in the currency of home country and Korean Won that is converted using the basic exchange rate, etc. set forth in the Enforcement Rules. Provided that, in cases where the Exchange deems that it is not possible to record in Korean Won due to an unavoidable cause, the reporting may be made using the currency of home country. (Amended on January 28, 2009)

(5) The base time for disclosure deadline of listed foreign corporations shall be the Korean time that corresponds to the time when the cause for disclosure obligation has occurred. [December 23, 2005]

(6) In applying the provisions of Chapter IV of this Regulation to the listed foreign corporations, the matters subject to the application shall be those matters stipulated in paragraphs (1) and (2). (Amended on January 28, 2009)

§26. Designation of Disclosure Officer, etc.

(1) Each listed foreign corporation shall, for the reporting pursuant to [§25(1) & (2)], designate one (1) officer, one (1) agent and at least one (1) staff member who are in charge of disclosure. Provided that, in the case of designating more than two (2) disclosure staff, the disclosure agent may not be designated, and one (1) of the two (2) disclosure staff designated shall meet the qualification requirements set forth in the Enforcement Rules, from among the qualifications of disclosure agent noted in subparagraph 2. (Amended on June 23, 2010; November 4, 2011)

(2) The disclosure agent noted in paragraph (1) (in the case of a corporation, it refers to a working-level employee; the same hereinafter) shall be a person who has an address or residence in Korea and meets the qualification requirements set forth in the Enforcement Rules, including having professional knowledge in corporate disclosure, thus being capable of acting on behalf of the relevant listed foreign corporation for all disclosure that the relevant listed foreign corporation makes. In such cases, the Exchange may require the corporation to replace its disclosure agent when it is confirmed that the relevant disclosure agent has failed to meet the qualification requirements after becoming the disclosure agent. (Amended on December 23, 2005; November 4, 2011)

(3) When designating or changing its disclosure officer and disclosure staff pursuant to paragraph (1), a listed foreign corporation shall notify the Exchange of such fact in writing without delay, and in the case of a disclosure agent, it shall notify the Exchange of such fact by attaching a document proving that the relevant agent is authorized to act on behalf of the relevant listed foreign corporation. (Amended on December 23, 2005; January 28, 2009; June 23, 2010)

(4) The provisions of [§38] and [§88(4) & (5)] shall apply *mutatis mutandis* to the disclosure agent noted in paragraph (1) [In cases where there is no disclosure agent, it shall refer to the disclosure staff who meets the qualification requirements of disclosure agent noted in paragraph (1)]. [February 22, 2013]

CHAPTER III. VOLUNTARY DISCLOSURE

§27. Explanation for Rumors or News, Etc.

(1) In cases where a KOSPI-stock-listed corporation intends to explain the rumors or news concerning the matters falling under any of the following subparagraphs, it may report the details to the Exchange. Provided that, this provision shall not apply to the case where the corporation was requested for inquired disclosure pursuant to [§12(1)].

1. The matters under [§7] through [§11], [§15], [§16] and [§28]; and
2. Other matters that are deemed to have effect on the stock price and trading volume of the KOSPI-stock-listed corporation.

(2) The provisions of [§14] shall apply *mutatis mutandis* to the reporting under paragraph (1).

(3) The necessary matters relating to the explanation of rumors or news pursuant to paragraph (1) such as the corporations subject to explanation disclosure, deadlines for reporting, and the scope of rumors or news subject to explanation shall be specified in the Enforcement Rules.

[July 22, 2015]

§28. Voluntary Disclosure

In the event that a matter, in addition to the material business matters noted in [§7], that is deemed necessary to be informed to the investors and stipulated in the Enforcement Rules occurs or a decision thereon is made, the relevant KOSPI-stock-listed corporation may report the details of such matter or decision to the Exchange. In such cases, the reporting shall be made by the day following the date of occurrence of the ground for reporting. (Amended on December 30, 2015)

(Wholly amended on January 28, 2009)

CHAPTER IV. UNFAITHFUL DISCLOSURE

Section 1. Types Of Unfaithful Disclosure

§29. Non-fulfillment of Disclosure Obligations

In cases where a KOSPI-stock-listed corporation falls under any of the followings, the Exchange shall deem that the relevant corporation has failed to fulfill the disclosure obligations: (Amended on July 1, 2009; January 28, 2009; February 22, 2013; July 22, 2015; December 19, 2018)

1. Where it fails to make the reporting by the relevant deadlines under [§7] through [§12], [§14(1)] (including the case where [§14] is applied *mutatis mutandis* pursuant to [§27(2)]), [§15] through [§17], [§24-2(1) & (2)], [§25] and [§45] or the details reported pursuant to [§12] fall under subparagraph 3 of [§43];
2. Where it has made a false or incorrect disclosure of the matters to be disclosed pursuant to [§7] through [§12], [§14], [§15] through [§17], [§25], [§27], [§28] and [§45] or omitted the material matters;
- 2-2. Where it has made a false disclosure of the matters to be disclosed pursuant to [§24-2(1) & (2)];
3. Where, even though the withholding period has passed or the conditions for withholding has been removed as specified in [§43-2(3)], such facts have not reported by the next day; and
4. Where, in spite of the request for correction made by the Exchange pursuant to [§45-2], the corporation has failed to make the disclosure of the corrected details by the relevant deadline for correction.

§30. Reversals of Disclosure

(1) In cases where a KOSPI-stock-listed corporation falls under any of the following subparagraphs, the Exchange shall deem that the relevant corporation has reversed its previous disclosure: (Amended on December 23, 2005; January 28, 2009; July 1, 2009; December 18, 2009; April 21, 2010; July 22, 2015)

1. Case where it makes a disclosure which cancels or denies the entire details already disclosed pursuant to [§7] through [§12], [§15], [§16], [§25], [§27] and [§28], or other disclosures with a content equivalent thereto;

2. Case where, after making a disclosure denying the rumor, etc. in response to the request for inquired disclosure under {[§12(1)] (including [§14])} or pursuant to [§27(1) and (2)], or making a disclosure pursuant to [§45], it makes a disclosure which cancels or denies the entire details of the disclosure, or other disclosures with a content equivalent thereto within one (1) month [three (3) months in the case of the matters falling under [§7(1)3(a)(i), (v) & (vi)] (excluding KOSPI-stock-listed special purpose acquisition companies)]; and

3. Case where, within fifteen (15) days after making a disclosure in response to the request for inquired disclosure under [§12(2)], it makes a disclosure about the matters besides those disclosed in the inquired disclosure, which are specified in the Enforcement Rules.

(2) Notwithstanding subparagraphs 2 and 3 of paragraphs (1), when it falls under any of the followings, the Exchange may impose penalties on the relevant corporation for reversal of disclosure after reviewing the disclosed details, etc.: [December 29, 2010] (Amended on February 22, 2013; July 22, 2015)

1. Case of making a disclosure that suspends, cancels or denies entire or a material part of the disclosure already made after the period noted in paragraph (1)2 has elapsed, or other disclosure with a content equivalent thereto and falling under any of the followings:

- (a) Where the disclosure was made within fifteen (15) days after the period noted in paragraph (1)2 has elapsed; or

- (b) Where the Exchange deems it necessary to review if it falls under the reversal of disclosure in consideration of such factors as significance of disclosed details and influence on investors, etc.

2. Case of making a disclosure in response to the request for inquired disclosure pursuant to [§12(2)] and falling under any of the followings:

- (a) Where, within fifteen (15) days after making a disclosure in response to the request for inquired disclosure, it makes a disclosure about the matters under [§7] through [§11] besides the matters specified in the Enforcement Rules pursuant to paragraph (1)3; or

- (b) Where the matters under [§7] through [§11] is disclosed within seven (7) days

after the period noted in subparagraph 2a has elapsed.

3. Case where the final decision is not disclosed by the deadline for re-disclosure under [§14(1)] (including the case where [§14] is applied *mutatis mutandis* pursuant to [§27(2)]).

(3) Thee matters necessary for deciding whether or not to designate a corporation as the unfaithful disclosure corporation because of reversal of disclosure under paragraph (2), including the criteria and procedures for review, etc. shall be set forth in the Enforcement Rules. [December 29, 2010]

§31. Making Changes to Existing Disclosure

In cases where a KOSPI-stock-listed corporation falls under any of the following subparagraphs, the Exchange shall deem that the relevant corporation has changed the contents of its existing disclosure: (Amended on April 18, 2012; February 22, 2013; July 22, 2015; December 28, 2016; November 13, 2024)

1. Where the corporation has made a disclosure by changing the amount of single sales contract or supply contract by 50% or more, in the details of the disclosure made pursuant to [§7(1)1(c)];

2. Where the corporation has made a disclosure by changing the ratio of share allotment, the number of shares to be issued or the issuance amount by 20% or more, in the details of the disclosure on capital increase made pursuant to [§7(1)2(a)(i)] or [§8-2(1)3];

3. Where the corporation has made a disclosure by changing the ratio of capital reduction or the number of capital stocks reduced by 20% or more, in the details of the disclosure on the capital reduction made pursuant to [§7(1)2(a)(i)] or [§8-2(1)3];

4. Where the corporation has made a disclosure by changing the number of stocks retired by 20% or more, in the details of the disclosure on the stock retirement made pursuant to [§7(1)2(a)(ii)];

5. Where the corporation has placed an order with a quantity less than the number of treasury stocks which were reported to be acquired or disposed within the scheduled acquisition or disposal period, in the details of the disclosure made pursuant to [§7(1)2(a)(iii)]. Provided that, this provision shall not apply to the case where the treasury stocks were acquired in excess of the amount planned to acquire;

6. Where the corporation has made a disclosure by changing the ratio of stock split or reverse stock split by 20% or more, in the details of the disclosure made pursuant to [§7(1)2(a)(iv)];

7. Where the corporation has made a disclosure by changing the issuance amount, acquisition amount and/or sale amount of corporate bonds acquired before maturity, conversion price, exercise price of subscription rights or the exchange price by 50% or more, in the details of the disclosure made pursuant to [§7(1)2(a)(vi)] or [§8-2(1)5]; (Amended on October 1, 2025)

8. Where the corporation has made a disclosure by changing the investment amount by 50% or more, in the details of the disclosure made pursuant to [§7(1)2(b)(i)];
9. Where the corporation has made a disclosure by changing the amount of acquisition or disposal of tangible assets by 50% or more, in the details of the disclosure made pursuant to [§7(1)2(b)(ii)] or [§8-2(1)4];
10. Where the corporation has made a disclosure by changing the amount of equity investment or disposal of equity investment by 50% or more, in the details of the disclosure made pursuant to [§7(1)2(b)(iii)] or [§8-2(1)4];
- 10-2. Where the corporation has made a disclosure by changing the amount of acquisition or disposal of equity-related bonds by 50% or more, in the details of the disclosure made pursuant to [§7(1)2(b)(iii)] or [§8-2(1)4];
11. Where the corporation has made a disclosure by changing the amount of borrowings by 50% or more, in the details of the disclosure made pursuant to [§7(1)2(c)(i)]
12. Where the corporation has made a disclosure by changing the amount of liability assumed, debts forgiven, collateral provided and debit guarantee by 50% or more, in the details of the disclosure made pursuant to [§7(1)2(c)(ii) & (iii)];
- 12-2. Where the corporation has made a disclosure by changing the amount of prepayment, provisional payment or loan by 50% or more, in the details of the disclosure made pursuant [§7(1)2(c)(vii)];
13. Where the corporation has made a disclosure by changing the stock dividend ratio by 20% or more, in the details of the disclosure made pursuant to [§7(1)2(e)(iv)];
14. Where the corporation has made a disclosure by changing the amount of dividends per share (in the case of differential dividends, it shall be based on the dividends paid to minority shareholders and in the case of dividend in kind, it shall be the amount converted into cash) by 20% or more, in the details of the disclosure made pursuant to [§7(1)2(e)(v)];
15. Where the corporation has made a disclosure by changing the acquisition or transfer amount by 50% or more, in the details of the disclosure on the acquisition or transfer of business made pursuant to [§7(1)3(a)(v)] or [§8-2(1)4];
16. Where the corporation has made a disclosure by changing the merger ratio, split-off ratio or merger after split-off ratio by 20% or more, in the details of the disclosure on the merger, split-off or merger after split-off made pursuant to [§7(1)3(a)(v)] or [§8-2(1)1];
17. Where the corporation has made a disclosure by changing 50% of more the ratios, amounts and quantities in the details of the disclosure already made pursuant to [§27] and [§28];
18. Where the matters disclosed pursuant to [§8(1)] fall under subparagraphs 1 through 16

and the matters about a subsidiary that were disclosed by the holding company fall under subparagraph 17;

19. Where the matters disclosed pursuant to [§15] and [§16] fall under subparagraphs 1 through 18; and

20. Other cases where the corporation has made a disclosure by changing the details set forth in the Enforcement Rules as the Exchange deems them important.

(Wholly amended on January 28, 2009)

§32. Exceptions in Applying Provisions on Unfaithful Disclosure

(1) Notwithstanding the provisions of [§29] through [§31], the Exchange may not apply them to the case falling under any of the following subparagraphs: (Amended on January 28, 2009; March 29, 2023)1. Where it is unavoidable under other statutes, regulations, etc.;

2. Where a natural disaster, warfare, disturbance, sudden and notable change in economic conditions, or other incident similar thereto has occurred;

3. Where it is deemed necessary for the public interests and protection of investors;

4. Where the matters set forth in [§15] and [§16] have been disclosed in accordance with [§47]. In such cases, it shall be limited to the provisions of [§30] and [§31];

5. Where the relevant KOSPI-stock-listed corporation proves that it is not culpable for the cause; and

6. Other cases that are minor matters and the Exchange deems them to have no or little influence on stock prices. Provided that this provision shall not apply to the case where the measures under [§35(7)] have been taken to the corporation within the latest one (1) year.

(2) The Exchange shall deal with the unfaithful disclosure by listed foreign corporations and the measures thereon by imposing the measures equivalent to those imposed on the KOSPI-stock-listed corporations, but may not apply this provision in consideration of the geographical conditions, practice in the home country of the relevant listed foreign corporation, etc. (Amended on January 28, 2009)

(3) [Deleted on November 24, 2021]

Section 2. Procedures for Designation as Unfaithful Corporations

§33. Prior Notice on Designation as Unfaithful Disclosure Corporations, etc.

(1) When a KOSPI-stock-listed corporation falls under the provisions of [§29] through [§31],

the Exchange shall issue a prior notice on the fact that the relevant corporation may be designated as an unfaithful disclosure corporation. (Amended on December 23, 2005; September 12, 2008; January 28, 2009; February 22, 2013)

- (2) When a prior notice on designation as unfaithful disclosure corporation is issued pursuant to paragraph (1), the Exchange shall post such fact on its disclosure media, etc., and notify the relevant corporation of the fact.

§34. Official Objection to Prior Notice on Designation as Unfaithful Disclosure Corporation

- (1) When a listed corporation that has received a prior notice on the designation as unfaithful disclosure corporation pursuant to [§33(2)] have an objection to the details of the prior notice, such corporation may file an official objection to the Exchange within seven (7) days from the date of receiving such notification. (Amended on February 22, 2013)

(2) Provided that, there are no special reasons, the Exchange shall, after going through the deliberation at the KOSPI Market Listing and Disclosure Committee (hereinafter referred to as “the Committee”) within ten (10) days from the end of the period for objection filing noted in paragraph (1), make the decision on whether or not to designate the relevant KOSPI-stock-listed corporation as an unfaithful disclosure corporation, impose the fine for non-fulfillment of disclosure obligations pursuant to [§35-2] and request for replacement of the disclosure officer and disclosure staff noted in [§38-2], within three (3) days from the date of deliberation at the Committee. Provided that, in cases where the deliberation of the Committee is deemed not necessary in view of the contents of the violation, it may not go through the deliberation at the Committee. (Amended on January 28, 2009; June 23, 2010; July 22, 2015)

- (3) [Deleted on January 28, 2009]

(4) A KOSPI-stock-listed corporation that has received the prior notice on designation as unfaithful disclosure corporation pursuant to [§33(2)] may attend the deliberation of the Committee under paragraph (2) and present the statements about the particulars and circumstances of the relevant matter. [December 23, 2005] (Amended on January 28, 2009)

(5) A KOSPI-stock-listed corporation cannot file any official objection again to the decisions made pursuant to paragraph (2). (Amended on December 23, 2005; January 28, 2009)

(6) The matters necessary for filing an official objection pursuant to paragraph (1) shall be set forth in the Enforcement Rules.

§35. Designation of Unfaithful Disclosure Corporations, etc.

(1) In cases where a decision was made that a KOSPI-stock-listed corporation falls under the unfaithful disclosure corporation pursuant to [§34(2)], the Exchange shall designate the relevant KOSPI-stock-listed corporation as unfaithful disclosure corporation. Provided that, the designation of a KOSPI market-listed corporation as an unfaithful disclosure corporation may be deferred for a period of six (6) months as stipulated in the Enforcement Rules in consideration of the faithfulness of the relevant corporation in fulfilling the disclosure

obligations in the past. (Amended on January 28, 2009; July 22, 2015)

(2) In cases when designating a KOSPI-stock-listed corporation as unfaithful disclosure corporation pursuant to paragraph (1), the Exchange shall impose the demerit points considering the seriousness of details of breaching the disclosure obligation and the length of delay in disclosure, etc. (Amended on January 28, 2009; February 22, 2013)

(3) When imposing the demerit points pursuant to paragraph (2), if it is deemed that there are reasons for addition or reduction of demerit points, including the reasons for non-fulfillment of disclosure obligations, the degree of negligence, the degree of truthfulness in performing the ordinary disclosure duties, etc., the Exchange may impose the demerit points after making the addition or subtraction as stipulated in the Enforcement Rules. (Amended on January 28, 2009; February 22, 2013)

(4) [Deleted on January 28, 2009]

(5) In cases where, within one (1) year after having made the decision that the relevant corporation does not fall under the unfaithful disclosure corporation or the decision on demerit points pursuant to [§32], it was found that the relevant decision is improper due to an error in the documentary evidences or omission of relevant evidence, the Exchange may take necessary measures against the relevant matter, such as designation as unfaithful disclosure corporation or imposition of additional demerit points through the deliberation of the Committee. (Amended on January 28, 2009)

(6) [Deleted on January 28, 2009]

(7) When accepting the exception to application of unfaithful disclosure pursuant to [§32] or issuing a notice on the designation as an unfaithful disclosure corporation pursuant to [§33], the Exchange may take such measures as the request for an explanatory note about the relevant fact and the issuance of a warning, etc. to the relevant KOSPI-stock-listed corporation. [November 24, 2021]

§35-2. Fine for Noncompliance with of Disclosure Obligations

(1) When designating a KOSPI-stock-listed corporation as unfaithful disclosure corporation pursuant to [§35], the Exchange may impose a fine for noncompliance with disclosure obligations (hereinafter referred to as “the fine”) within the amount of KRW 1 billion, in addition to the demerit points. (Amended on April 18, 2012; July 22, 2015; December 28, 2016)

(2) With respect to the imposition of the fine under paragraph (1), the Exchange shall separately establish imposition guidelines, imposition amounts, whether to impose concurrently the demerit points and the fine or to choose either the demerit point or the fine, and other necessary matters.

(3) In cases where a KOSPI-stock-listed corporation fails to pay the fine under paragraph (1) by the payment deadline, the Exchange may take necessary actions such as imposition of additional demerit points or filing an application for payment order.

[January 28, 2009]

Section 3. Disciplinary Measures Against Unfaithful Disclosure Corporations

§36. Publication of Fact on Designation as Unfaithful Disclosure Corporation, etc.

When it has designated a KOSPI-stock-listed corporation as unfaithful disclosure corporation, etc. pursuant to [§35], the Exchange shall post such fact on its disclosure media, etc. as stipulated in the Enforcement Rules. (Amended on January 28, 2009)

§37. [Deleted on January 28, 2009]

§38. Training Programs for Unfaithful Disclosure Corporations

The Exchange shall, when a KOSPI-stock-listed corporation has been designated as unfaithful disclosure corporation pursuant to [§35], organize training programs for the disclosure officer and disclosure staff of the relevant corporation to prevent unfaithful disclosures, and the disclosure officer and disclosure staff of the relevant corporation shall complete the training programs. (Amended on January 28, 2009)

§38-2. Request for Replacement of Disclosure Officer, etc. of Unfaithful Disclosure Corporation

(1) In cases where a KOSPI-stock-listed corporation is designated as unfaithful disclosure corporation pursuant to [§35(1)] and it is specified in the Enforcement Rules in consideration of the contents and frequency of violation, the Exchange may request the relevant corporation to replace its disclosure officer and disclosure staff and publicly announce the fact that such request has been made.

(2) In cases where a KOSPI-stock-listed corporation fails to replace its disclosure officer and disclosure staff within the period specified in the Enforcement Rules from the date when the request for replacement was made pursuant to paragraph (1) and make a registration of the change with the Exchange, the Exchange may impose up to four (4) demerit points on the relevant corporation as specified in the Enforcement Rules.

[July 22, 2015]

§39. Request for Submission of Improvement Plan and Implementation Report to Unfaithful Disclosure Corporations, etc.

(1) In cases where a KOSPI-stock-listed corporation is designated as unfaithful disclosure corporation pursuant to [§35] and falls under any of the followings, the Exchange may request the relevant corporation to submit an improvement plan to prevent and avoid recurrence of unfaith disclosure, and to submit a report on the implementation of the plan within ten (10) days after six (6) months from the date of submission of the improvement plan. Provided that, in cases where the improvement plan already submitted is being

published pursuant to paragraph (3), the submission of improvement plan may not be requested. (Amended on December 23, 2005; January 28, 2009; June 23, 2010; November 4, 2011, February 22, 2013; July 22, 2015)

1. When it is designated as administrative issue pursuant to the KOSPI Market Listing Regulation because of non-fulfillment of disclosure obligations; and
 2. When the accumulated demerit points that were additionally imposed during the period under the designation as administrative issue pursuant to subparagraph 1 is fifteen (15) or more.
- (2) A KOSPI-stock-listed corporation that was requested for submission of an improvement plan and implementation report shall submit the improvement plan and implementation report in the manner as stipulated in the Enforcement Rules, and in cases where it fails to implement the request (including the case of failing to implement the improvement plan), the Exchange may impose up to three (3) of demerit points on the relevant KOSPI-stock-listed corporation as stipulated in the Enforcement Rules. In such cases, when it is deemed necessary, the Exchange may request for submission of corrected or supplemented improvement plan and implementation report. (Amended on January 28, 2009; July 22, 2015)
- (3) The Exchange may publish the improvement plans and the implementation reports submitted by KOSPI-stock-listed corporations through its disclosure media for a period of six (6) months. (Amended on January 28, 2009; July 22, 2015)

CHAPTER V. ADMINISTRATION OF KOSPI-STOCK-LISTED CORPORATIONS

§40. Trading Suspension

(1) In cases where a KOSPI-stock-listed corporation falls under any of the following subparagraphs, the Exchange may suspend the trading of the stocks, etc. issued by the relevant KOSPI-stock-listed corporation. Provided that, in the case of subparagraph 4, ELWs issued by a corporation that has listed ELWs and ETNs issued by a corporation that has listed ETNs shall be included: (Amended on December 23, 2005; January 28, 2009; December 18, 2009; December 1, 2010; April 29, 2015)

1. Where it has failed to respond to the request for inquired disclosure under [§12] by the reporting deadline;
2. Where it discloses, from among the matters to be disclosed pursuant to [§7] through [§11], [§25(1)] and [§51], the matters that may have a considerable influence on the stock price or trading volume, and are specified in the Enforcement Rules;
3. Where it has been designated as unfaithful disclosure corporation pursuant to [§35]; and

4. Where the price or trading volume suddenly changes or is likely to suddenly change in relation to the rumors or news, etc.

(2) “Rumors or news, etc.” in paragraph (1)4 shall refer to the rumors or news, etc. about a KOSPI-stock-listed corporation that falls under any of the following subparagraphs. Provided that, in the case of ELWs, they shall refer to the rumors or news, etc. about a corporation that has listed ELWs falling under subparagraph 1 of [§143-1] of the KOSPI Market Listing Regulation and in the case of ETNs, they shall refer to the rumors or news, etc. about a corporation that has listed ETNs falling under subparagraph 1 of [§149-7] of the same Regulation. (Amended on February 22, 2013; April 29, 2015; December 19, 2018)

1. Where the bill or check issued by the corporation has been dishonored or its current account transactions with a bank have been suspended or banned;

2. Where the whole or a part of its business has been suspended;

3. Where an application for bankruptcy, dissolution or commencement of rehabilitation procedures pursuant to the relevant laws has been filed or the de facto rehabilitation procedures have commenced;

4. Where, according to the audit report on annual report or semiannual review report of the latest fiscal year under the Act on External Audit, the matter falling under any of the following items(a)In the case of audit report, the matter falling under any of the followings(i) The auditor’s opinion is an adverse opinion, disclaimer of opinion or qualified opinion due to the restriction on the scope of audit;

(ii) Capital impairment of over 50% of capital stock in the latest fiscal year; or

(iii) The sales amount of the latest fiscal year is less than KRW 5 billion. Provided that, this provision shall not apply to the special purpose acquisition companies under [§2(20)].

(b) In the case of semiannual review report, the adverse opinion or disclaimer of opinion in the audit review

5. In addition, as a material matter in which a sharp fluctuation in stock prices or trading volume is expected, when it is possible to inquire about it.

1. (3) Notwithstanding paragraph (1), the Exchange may not suspend trading in any of the following cases: (Amended on December 1, 2010; February 22, 2013Case of trading halt pursuant to the provisions of paragraph (1)4;

2. Case where the trading is, or has been, suspended pursuant to [§153] of the Listing Regulation; and

3. In addition, cases where it is deemed that the trading suspension is not necessary for market management, as specified in the Enforcement Rules.

(4) Notwithstanding paragraph (1), the Exchange may not suspend the trading of the stocks

issued by listed foreign corporations, while taking into consideration the geographic locations, practices in the home country, etc.

(5) The matters necessary for the suspension and resumption of trading under the provisions of paragraph (1) shall be stipulated in the Enforcement Rules.

(6) Paragraphs (1) through (3) and (5) shall apply *mutatis mutandis* to the case of the derivatives linked securities under Subparagraph (c) of Article 125(2) of the Enforcement Decree of the Act, which underlie the subscription rights certificates, subscription warrants, and the relevant stocks (including those issued by KOSDAQ-listed corporations) issued by KOSPI-stock-listed corporations, single-stock ETF securities under [§125(2)6(c)] of the Listing Regulations, and single-stock ETN securities under [§149-3(2)2(c)] of the same Regulations. (Amended on July 22, 2005; January 28, 2009; December 1, 2010; April 15, 2026)

§41. Reporting of Materials distributed at Investor Relations Session

(1) When a KOSPI-stock-listed corporation holds a briefing session on its management, business plans and prospects, etc., (hereinafter referred to as the "investor relations session"), in addition to the matters to be disclosed under this Part, it shall make the investor relations session publicly; and the contents of the materials distributed at the investor relations session shall maintain fairness and objectivity. (Amended on January 28, 2009)

(2) When intending to organize an investor relations session referred to in paragraph (1), a KOSPI-stock-listed corporation shall notify the Exchange in writing of the time, place, and details of the investor relations session, and the Exchange may make the details of the relevant investor relations session available to the investors through the Corporate Information Center, etc. In such cases, the Exchange may, when it deems that the details of the relevant session are considerably different from the actual facts, request the relevant corporation to verify the details presented. When any material differences are found as a result of the verification, the provisions under [§29] through [§31] may apply. (Amended on January 28, 2009; December 1, 2010)

(3) In cases where the information distributed at an investor relations session includes the information subject to fair disclosure, KOSPI-stock-listed corporations shall report such information to the Exchange as stipulated in [§15] through [§17]. In such cases, it shall be deemed that the notification under paragraph (2) has been made. (Amended on January 28, 2009)

(4) The Exchange, Korea Listed Companies Association (hereinafter referred to as the "KLCA") and Korea IR Services may advise, guide and sponsor KOSPI-stock-listed corporations for the organization of investor relations sessions. (Amended on January 28, 2009; April 18, 2012)

§42. Management of Internal Information

(1) A KOSPI-stock-listed corporation shall, when in addition to the matters to be disclosed

under this Part, an event that may have a considerable influence on the company management or properties, or the investors' decisions (hereinafter referred to as "internal information") took place, have such internal information concentrated to the disclosure officer under [§26] or [§88(1)] for the overall control and proper disclosure of such information. (Amended on January 28, 2009)

(2) KOSPI-stock-listed corporations shall establish regulations for the management of internal information by referring to the "Regulation on the standard management of internal information of listed corporations" formulated by the KLCA and make the regulations public through their websites, etc. (Amended on January 28, 2009; April 18, 2012)

§43. Withholding of Disclosure by the Exchange

When the contents of a disclosure made by a KOSPI-stock-listed corporation fall under any of the followings, the Exchange may withhold such disclosure for a specified period of time until the relevant cause is resolved. (Amended on December 23, 2005; September 12, 2008; January 28, 2009; December 18, 2009)

1. Case where the details disclosed by the KOSPI-stock-listed corporation fall under the confidential information under the relevant statutes such as the Military Secret Protection Act;
2. Case where it is confirmed that the details disclosed by the KOSPI-stock-listed corporation are in violation of the related statutes;
3. Case where it is judged that the sources of details disclosed by the KOSPI-stock-listed corporation could not be verified or such details may confuse the investors in making their investment decisions;
4. Case where the details re-disclosed pursuant to [§14(1)] are deemed to be similar to those already disclosed;
5. Case where the details disclosed are judged to be in violation of [§14(2)]; and
6. Case where it is deemed that the matters other than those mentioned in [§7] through [§11] and [§28] or similar thereto may possibly undermine the sound trading practices.

§43-2. Withholding of Disclosure upon Request

(1) In cases where it is necessary to keep the business confidentiality, a KOSPI-stock-listed corporation may request the Exchange to withhold the disclosure matters stipulated in the Enforcement Rules, from among the matters to be reported in each of the following subparagraphs. In such cases, a consultation with the Exchange shall be made in advance: (Amended on December 30, 2015)

1. Matters noted in [§7(1)1(c)];
2. Matters noted in [§7(1)2(b)(i)]; and

3. Matters noted in [§7(1)4].

(2) With regard to the request to withhold the disclosure noted in paragraph (1), if withholding of the disclosure is deemed necessary after having considered the balance between the need to keep the business confidentiality and the investor protection, the Exchange may approve the request.

(3) A KOSPI-stock-listed corporation shall keep the confidentiality for the matters for which the disclosure was withheld pursuant to paragraphs (1) and (2), and when the withholding period ends or the conditions for withholding are lifted, the disclosure that has been withheld shall be made by the next day.

[January 28, 2009]

§44. Request for Submission of Materials or Exchange of Information

(1) With respect to the inspection of disclosed details and fulfillment the disclosure obligation pursuant to [§50], the Exchange may request the relevant KOSPI-stock-listed corporation to submit the materials that the Exchange deems necessary for the verification of the relevant facts, and the relevant corporation shall, provided that there are no special reasons, comply with the request without delay. (Amended on January 28, 2009)

(2) In cases where a KOSPI-stock-listed corporation does not comply with the Exchange's request for submission of materials pursuant to paragraph (1), the Exchange may impose up to three (3) of demerit points on the relevant corporation as stipulated in the Enforcement Rules. [December 30, 2015]

(3) The Exchange may, pursuant to Article 392(2) of the Act and Article 361 of the Enforcement Decree of the Act, request the administrative authorities and other related institutions to provide with or exchange the information relevant to the details disclosed by a KOSPI-stock-listed corporation. (Amended on January 28, 2009)

§45. Reporting of Changes in Details of Existing Disclosure

When the details that were confirmed and publicly disclosed by a KOSPI-stock-listed corporation pursuant to [§7] through [§11], [§15] through [§17], [§25], [§27] or [§28] are cancelled or changed, the KOSPI-stock-listed corporation shall report such fact to the Exchange by the day of occurrence of the incident. Provided that, this provision shall not apply to the case that is a minor change to [§7(1)1(c)] and specified in the Enforcement Rules. (Amended on December 23, 2005; January 28, 2009; July 1, 2009; December 18, 2009; June 23, 2010; April 29, 2015; July 22, 2015; December 28, 2016)

§45-2. Request for Correction of Details of Disclosure

(1) In cases where the details of a disclosure made by a KOSPI-stock-listed corporation pursuant to the main sentence of [§6(2)] fall under any of the subparagraphs of [§43], the Exchange may request for correction of the disclosed details. (Amended on July 22, 2015)

(2) A KOSPI-stock-listed corporation that has been requested to make a correction pursuant to paragraph (1) shall make the corrected disclosure by the afternoon of the same day if the correction request is made in the morning and by the morning of the next day if the correction request is made in the afternoon.

(3) When making a request for correction pursuant to paragraph (1), the Exchange may make public the fact on the request for correction and the correction deadline through the disclosure media.

[February 22, 2013]

§46. Disclosure of Attendance of Outside Directors

When reporting the matters determined by a resolution of the board of directors, from among the matters to be disclosed pursuant to [§7] through [§11] and [§28], a KOSPI-stock-listed corporation shall include the information on whether the outside directors have attended the board meeting. (Amended on December 23, 2005; January 28, 2009; December 18, 2009)

§47. Methods of Disclosing Information on Predictions, etc.

(1) A KOSPI-stock-listed corporation may disclose the matters to be disclosed pursuant to this Part and other business information that may have an influence on the stock price by including the forward-looking statement under Article 119(3) of the Act. (Amended on January 28, 2009)

(2) When a KOSPI-stock-listed corporation makes a disclosure by including a forward-looking statement pursuant to paragraph (1), it shall be made in accordance with the manner specified in each of the following subparagraphs: (Amended on September 12, 2008; January 28, 2009)

1. The fact that the relevant statement or indication is a forward-looking statement shall clearly be noted;
2. The grounds for the assumptions or judgments relating to the predictions or projections shall clearly be noted;
3. The relevant statement or indication shall have been made based on a rational ground or assumption; and
4. For the relevant statement or indication, a clear precautionary note indicating that the predictions may differ from the actual performances shall be added.

§48. Disclosure in English Language

(1) KOSPI-stock-listed corporations may make a disclosure in English within five (5) trading days after making the disclosure in Korean. Provided that, the report on corporate governance

under [§24-2] of the Regulation and matters stipulated in the Enforcement Rules may be submitted in English within three (3) months. (Amended on January 28, 2009; July 22, 2015; November 24, 2021; March 29, 2023; November 13, 2024)

(2) Notwithstanding paragraph (1), a KOSPI-stock-listed corporation with total assets of KRW 2 trillion or more as of the end of the latest fiscal year (hereinafter referred to as “corporation subject to English disclosure”) shall submit an English disclosure after filing the corresponding Korean disclosure. In this case, necessary matters such as the standard for applying the total assets at the end of the latest fiscal year, matters to be disclosed in English, disclosure deadline, etc. shall be stipulated in the Enforcement Rules. (Amended on March 29, 2023; January 28, 2026)

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§49. Editorial Corrections

In cases where it is deemed that the details reported by a KOSPI-stock-listed corporation differ from the base documents such as the minutes of the board meeting or may possibly confuse the investors in making their investment decisions due to editorial errors such as wrong words or omitted words, etc., the Exchange may advise the relevant corporation to voluntarily correct the relevant wording or phrase. (Amended on January 28, 2009)

(Fully amended on December 23, 2005)

§50. Checking of Fulfillment of Disclosure Obligations

(1) The Exchange may check if KOSPI-stock-listed corporations faithfully fulfill the disclosure obligations under this Part. (Amended on January 28, 2009)

(2) The monitoring pursuant to paragraph (1) may be accomplished by way of reviewing the periodic reports such as annual reports and various reported documents that were submitted by the KOSPI-stock-listed corporations, requesting for other documentary evidences or making site visits, etc. (Amended on December 23, 2005; January 28, 2009)

§51. Disclosure by the Exchange, etc.

(1) The Exchange shall disclose the matters falling under any of the followings on behalf of the relevant KOSPI-stock-listed corporation through the disclosure media: (Amended on December 1, 2010)

1. The business details of the KOSPI-stock-listed corporation that the Exchange has verified with the related institutions by making a request pursuant to Article 361 of the Enforcement Decree of the Act, as the Exchange deems that the relevant details need to be promptly disclosed because they might have a considerable influence on the investment decisions of investors;

2. The matters relating to the filing of lawsuits and an application for permission of lawsuits under Article 7 of the Securities-related Class Action Act, the matters relating to the court ruling on the permission of lawsuits under Article 19 of the same Act, and any

other matters that the Exchange has been notified by the court pursuant to other relevant statutes; and

3. The matters that the Exchange has been notified by a bank pursuant to Article 392(1) of the Act.

(2) The Exchange may publicly announce information that can be used as a reference for investment decisions for the purpose of managing its markets and protecting investors in accordance with the Disclosure Regulation, and the Listing Regulation, etc. [November 24, 2021]

(3) In cases where, as a result of the checking under [§50], the Exchange confirms that a corporation subject to English disclosure has intentionally, very negligently, or habitually violated the obligation, it may announce the fact to the public. Amended on March 29, 2023; January 28, 2026)

[January 28, 2009]

PART II. REPORTING BY BOND-LISTED CORPORATIONS, ETC.

[January 28, 2009]

§52. Objectives

The purpose of this Part is to stipulate the matters necessary for reporting and disclosing of the business details of the corporations that have listed corporate bonds under Article 391 of the Act and Article 360 of the Enforcement Decree of the Act and the administration thereof.

[January 28, 2009]

§53. Definitions

(1) The term “bond-listed corporation” in this Part means an issuer that has listed the contingent capital securities, or the securities provided for in Item (b) or (c) of Article 167(1)1 of the Enforcement Decree of the Act on the KOSPI Market. Provided that, the special purpose company, etc. under Article 3 of the Asset-backed Securitization Act shall be excluded. (Amended on September 11, 2013)

(2) The term “listed bonds” in this Part means the contingent capital securities or securities provided for in Item (b) or (c) of Article 167(1)1 of the Enforcement Decree of the Act, which are listed on the KOSPI Market. (Amended on September 11, 2013)

(3) The term “disclosure officer” in this Part means a full-time director of a bond-listed corporation or a full-time employee falling under Article 401-2(1)3 of the Commercial Act, who is able to perform the tasks relating to disclosure on behalf of the relevant bond-listed

corporation. Provided that, in the case of a corporation that has filed an application for commencement of rehabilitation procedures pursuant to the Debtor Rehabilitation and Bankruptcy Act or for whom the decision on the commencement of rehabilitation procedures has been made, the custodian under Article 74 of the Debtor Rehabilitation and Bankruptcy Act or the preservation custodian under Article 85 of the same Act shall be deemed to be the disclosure officer.

(4) In addition, other terms used in this Part have the same meaning given to them in the Act, the Enforcement Decree of the Act, the Enforcement Rules of the Act, other relevant laws and regulations and the regulations governing the business of the Exchange. (Amended on December 1, 2010)

[January 28, 2009]

§53-2. Applicable Criteria

Provisions of [§3] shall apply *mutatis mutandis* to financial matters of the bond-listed corporations applicable in this Part. Provided that, a bond-listed parent company that has adopted the accounting standards under Article 5(1)2 of the Act on External Audit shall use the separate financial statement as the base when it falls under [§57(1)7 & 8]. (Amended on December 19, 2018)

[February 22, 2013]

§54. Faithful Fulfillment of Disclosure Obligations, etc.

(1) Each bond-listed corporation shall faithfully report the matters to be disclosed under the Act and this Part.

(2) The bond-listed corporations shall make sure that the business details pursuant to paragraph (1) are not leaked or circulated as news or rumor in the securities market before disclosing them publicly.

[January 28, 2009]

§55. Method of Reporting and Submission of Documents

(1) The matters that the bond-listed corporations report to the Exchange shall be prepared in writing and submitted in person, via postal services or facsimile. Provided that, in the case of submitting the disclosure materials by means of an electronic document, the submission shall be made in the manner as specified in PART III of this Regulation. (Amended on February 22, 2013)

(2) In cases where a bond-listed corporation, which has listed stocks in the KOSPI Market, KOSDAQ Market or KONEX Market, has disclosed the matter specified in [§57] in relation to the relevant stocks, it shall be deemed that such bond-listed corporation has made a disclosure in accordance with this PART. (Amended on July 22, 2015)

[January 28, 2009]

§56. Disclosure by the Exchange

The proviso to [§6(2)] and [§51] shall also apply *mutatis mutandis* to bond-listed corporations specified in the Enforcement Rules. In such cases, “KOSPI-stock-listed corporations” shall be construed as “bond-listed corporations” (Amended on February 22, 2013; July 22, 2015)

[January 28, 2009]

§57. Reporting of Material Business Matters

(1) When falling under any of the following subparagraphs, a bond-listed corporation shall report the details of such fact or decision to the Exchange on the same day when the cause for reporting has occurred. Provided that, in cases where a corporation that has issued the special purpose bonds prescribed in Article 4(3) of the Act has listed the contingent capital securities, such corporation shall apply with subparagraph 11 only: (Amended on February 22, 2013; September 11, 2013; July 22, 2015; December 30, 2015; December 19, 2018)

1. Case where a bill or check issued by the corporation is dishonored or its current account transactions with a bank are suspended or banned;
2. Case where its business activities are completely suspended, or a substantial part thereof is partially suspended (including the case where a decision on such suspensions was made);
3. Case where it falls under any of the followings pursuant to the Debtor Rehabilitation and Bankruptcy Act:
 - (a) Where an application for commencement, conclusion or discontinuation of rehabilitation procedures is filed; and where it is notified of the court rulings on the commencement, conclusion or discontinuation of rehabilitation procedures, the dismissal of the application for commencement of rehabilitation procedures, the cancellation of the decision on commencement of rehabilitation procedures, and the approval or disapproval of the rehabilitation plan, etc.; or
 - (b) Where an application for bankruptcy is filed; and where it is notified of the court rulings on declaration of bankruptcy or dismissal of the application for bankruptcy.
4. Case where a ground for dissolution provided for in Article 517 of the Commercial Act and other Acts occurs. Provided that, this provision shall not apply to the causes falling under the grounds for dissolution provided for in Subparagraph 4 of Article 227 and Subparagraph 1-2 of Article 517 of the Commercial Act;
5. Case where an event prescribed in Articles 522 and 530-2 of the Commercial Act

occurs;

6. Case where a lawsuit that will have a considerable influence on the listed bonds is filed;

7. Case where, according to the audit report submitted by the CPA auditor pursuant to Article 23(1) of the Act on External Audit, a fact falling under any of the followings is found;

(a) Where the CPA auditor's opinion is adverse, disclaimer of opinion or qualified due to the limit placed on the scope of audit; or

(b) Where the capital is completely impaired in the latest fiscal year. Provided that, the provision of this item shall not apply to the corporation that has issued the non-statutory asset-backed securities under [§85(5-2)] of the KOSPI Market Listing Regulation.

8. Case where, according to the semiannual review report, the auditor's review opinion is adverse or disclaimer of opinion;

9. [Deleted on July 22, 2015]

10. Case where it falls under any of the followings in relation to the violation of accounting standards:

(a) Where it is confirmed that the relevant corporation is informed or referred to the persecutor's office pursuant to the Regulation on External Audit and Accounting, etc. by the Securities and Futures Commission and the outcome thereafter is confirmed; or

(b) Where the relevant corporation is indicted by the persecutor for the reasons of violating the accounting standards or the outcome thereafter is confirmed. Provided that, this provision shall not apply to the case where a report was filed pursuant to the provisions of item (a).

11. Case where a trigger event for conversion of contingent capital securities into stocks occurs; or a trigger event for mitigation of or exemption from the obligation to redeem the contingent capital securities and pay interest thereon occurs.

(2) When falling under any of the followings, a bond-listed corporation shall report the details of such fact or decision to the Exchange by the day following the day when the cause for reporting has occurred: (Amended on December 1, 2010)

1. Case where the notice on forfeiting of the benefit of time of listed bonds is made;

2. Case where the notice on calling of a meeting of bond holders is made;

3. Case where the notice on the resolution of the meeting of bond holders is made;

4. Case where the payment of the principal and interests of listed bonds was not made; or

5. Other cases where a significant event concerning the rights, benefits or managing of listed bonds occurs.

[January 28, 2009]

§57-2. Matters subject to Inquired Disclosure and Methods of Requesting for Inquired Disclosure, etc.

(1) With respect to the matters specified in [§57] or other matters equivalent thereto, the Exchange may request for an inquired disclosure in order to verify the rumors, etc., and the bond-listed corporation which has received the request to make an inquired disclosure shall respond to such request on the same day if the request was made in the morning; or by the morning of the next day (by the next day in the case of receiving the request for inquired disclosure for the reasons mentioned in each subparagraph of [§40(2)]) if the request was made in the afternoon.

(2) The provisions of [§13] shall apply *mutatis mutandis* to the methods of requesting bond-listed corporations for inquired disclosure.

(3) The provisions of [§40(1)4] shall apply *mutatis mutandis* to the trading of listed-bonds (including non-guaranteed special purpose bonds) under [53(2)].

[December 1, 2010]

§58. Unfaithful Disclosure

(1) When a bond-listed corporation falls under any of the following subparagraphs, such cases shall be deemed to be an unfaithful disclosure. Provided that, this provision shall not apply to the case where a bond-listed corporation that listed its stocks on KOSPI Market, KOSDAQ Market or KONEX Market has received a prior notice on being designated as an unfaithful disclosure corporation by breaching provisions of [§57(1)] or [§57-2(1)] in connection with the stocks: (Amended on July 22, 2015)

1. Non-fulfillment of disclosure obligations:

(a) Case where it fails to make the reporting by the deadlines under [§57] or [§57-2(1)], or the details reported pursuant to [§57-2(1)] are not verified or deemed to cause confusions for investors in making investment decisions; and

(b) Case where it discloses the matters to be disclosed under [§57] or [§57-2(1)] falsely or incorrectly, or with material matters omitted.

2. Reversal of disclosure:

Case where it makes a disclosure that completely cancels or denies the details already disclosed pursuant to [§57] or [§57-2(1)], or other disclosure with a content equivalent

thereto.

3. Making changes to existing disclosure:

Case where it makes a disclosure by changing the material details of a disclosure already made pursuant to [§57] or [§57-2(1)].

(2) Notwithstanding the main sentence of paragraph (1), if the contents of the violation are deemed to be minor or inevitable, the provisions on unfaithful disclosure may not apply to such cases. [April 21, 2010]

[January 28, 2009]

§59. Publication of the Fact about Unfaithful Disclosure

In cases where a bond-listed corporation falls under the unfaithful disclosure corporation under [§58], the Exchange shall make public such fact through its disclosure media.

[January 28, 2009]

§60. Checking Fulfillment of Disclosure Obligations

(1) The Exchange may check whether bond-listed corporations faithfully fulfill the disclosure obligations.

(2) The monitoring pursuant to paragraph (1) may be accomplished by such means as reviewing periodic reports and other reports submitted by bond-listed corporations, requesting for other verifying documents, or making site visits, etc.

[January 28, 2009]

PART III. REPORTING, ETC. BY ELECTRONIC DOCUMENTS

§61. Objectives

The purpose of this Part is to stipulate the matters necessary for KOSPI-stock-listed corporations, etc. in filing a statement, a report, or other document or material (hereinafter referred to as the “reports, etc.”) the Exchange by an electronic document. (Amended on December 23, 2005; January 28, 2009; February 22, 2013)

§62. Definitions

(1) The term “submitter” in this Part shall refer to a person who is obliged to submit electronic documents under [§63]. (Amended on January 28, 2009)

(2) The term “citation method” in this Part shall refer to, in cases where the matters to be stated in or the supplementary documents to be attached to an electronic document are the same as those of an electronic document that was already submitted, a method in which the overlapping part is omitted after pointing out such fact and suggesting referring to the electronic document already submitted.

(3) The term “digital signature” in this Part shall mean a piece of information that is generated by using the digital signature creating key through the asymmetric cryptogram and unique to an electronic document, which enables to verify the identity of the person who submitted the electronic document and whether or not the electronic document has been modified.

(4) The term “asymmetric cryptogram” in this Part shall mean a cryptographic method in which the key used for encryption of information and the key used for restoration of encrypted information are different from each other.

(5) The term “digital signature creating key” in this Part shall refer to a piece of information in digital form utilized for digital signature.

§63. Reports, etc. filed in Electronic Documents

The reports, etc. that are filed by an electronic document under this Part shall be each of the followings: (Amended on December 23, 2005; December 18, 2009; December 1, 2010)

1. The reports, etc. that are submitted to the Exchange pursuant to the Disclosure Regulations and Listing Regulations of the Exchange, the KOSPI Market Business Regulation, the Derivatives Market Business Regulation, the Market Oversight Regulation and the Membership Regulation of the Exchange.
2. [Deleted on January 28, 2009]
3. [Deleted on December 23, 2005]
4. [Deleted on December 23, 2005]

§64. Operation of Electronic Disclosure System

(1) The Exchange shall operate an electronic disclosure system that is capable of receiving the reports, etc. submitted in a form of electronic document pursuant to [§63]. (Amended on January 28, 2009)

(2) The Exchange shall make available the reports, etc. that are received in a form of electronic document (including the reports, etc. received electronically from the Financial Supervisory Service pursuant [§76]) for the public use through information and communication networks. (Amended on January 28, 2009)

§65. Registration of Submitters of Electronic Documents

(1) The submitter of electronic documents shall register his/her personal information with the Exchange in advance as stipulated in the Enforcement Rules and shall do the same when there is any change in the registered information. Provided that, in cases where the submitter has been registered or re-registered the changes in the information registered with the Financial Supervisory Service pursuant to the Regulation on Securities Issuance and Disclosure (hereinafter referred to as “the Regulation on Issuance and Disclosure”), the registration with the Exchange may be substituted by the submission of a copy of the registration documents submitted to the Financial Supervisory Service. (Amended on January 28, 2009)

(2) When a submitter of electronic documents has been registered with the Exchange pursuant to paragraph (1), the Exchange shall supply the necessary information, including the unique identification number, to the relevant submitter.

§66. Submission, etc. of Electronic Documents

(1) Submitters shall prepare and submit the electronic documents in accordance with the Guidelines for Submission of Electronic Documents by KOSPI-stock-listed Corporations, etc. (hereinafter referred to as “Guidelines for Submission of Electronic Documents”). (Amended on January 28, 2009)

(2) Submitters of electronic documents shall include the matters necessary for identifying the submitter and the information necessary for receiving, classifying and processing the electronic documents in the reports, etc. submitted in a form of electronic document.

(3) Submitters of electronic documents may submit paper copies of the supplementary documents set forth in the Enforcement Rules, which are difficult to include or attach to electronic documents. In such cases, the title of such hard copy document and the place where the document is available for viewing shall be stated in the electronic document.

§67. Receipt of Electronic Documents and Notification Thereof

(1) The Exchange may refuse to receive the reports, etc. submitted electronically by a submitter, if the reports, etc. are not prepared and submitted in accordance with the Guidelines for Submission of Electronic Documents.

(2) In cases where the electronic documents are effectively received within the business hours for disclosure, it shall be deemed that they are received on that day. Provided that, this provision shall not apply to the case where the Exchange deems it necessary to immediately disclose the matters that influence investment decisions of investors.

(3) The Exchange shall notify the submitter of the receipt of the reports, etc. submitted by means of electronic document by using the information and communication networks.

§68. Omission of Drawings or Photographs, etc.

(1) A submitter of electronic documents may exclude the drawings, photographs, etc. that are difficult to include in an electronic document. In such cases, an explanatory note about the excluded drawings, photographs, etc. shall be included in the relevant part so that one can understand what have been omitted.

(2) A submitter shall keep the omitted drawings, photographs, etc. for the disclosure period stipulated in the relevant Regulations of the Exchange and shall submit them without delay if the Exchange requests.

§69. Separate Submission of Attached Documents

A submitter of electronic documents may, if the Exchange accepts, submit the attached documents separately from the main text of the reports, etc. In such cases, the attached documents shall be submitted immediately after the main reports, etc. were submitted.

§70. Submission by Way of Citation Method

(1) In cases where a submitter submits an electronic document by way of citation method, each of the following matters shall clearly be noted in the electronic document:

1. The title and receipt number of the electronic document in which the part to be cited is described; and
2. The corresponding part of the electronic document to be cited.

(2) The matters subject to application of the citation method under paragraph (1) and other details shall be stipulated in the Guidelines for Submission of Electronic Documents.

§71. Submission of Corrected Documents

In cases where a submitter received a request for correction of a submitted electronic document or intends to correct it voluntarily, the submitter shall submit the corrected version of the electronic document, together with the details of the corrections.

§72. Documents prepared by Persons Other Than the Submitter

(1) From among the documents to be attached to the reports, etc. pursuant to [§63], those that are prepared by a person other than the submitter, including a certified public accountant, shall digitally be signed by the person who prepared them before they are given to the submitter. (Amended on January 28, 2009)

(2) The scope of the documents to be prepared by a person other than the submitter pursuant to the provisions of paragraph (1) shall be determined by the Exchange.

§73. Number of Copies of Electronic Document to be submitted

In cases where a submitter has submitted the reports, etc. in a form of electronic document, it shall be deemed to have met the number of copies to be submitted as stipulated in the relevant Regulations of the Exchange.

§74. Submission of Electronic Document on behalf of Submitter

(1) A submitter may have another person perform the task of submitting the reports, etc. by means of electronic document.

(2) The person who submits the electronic documents on behalf of a submitter (hereinafter referred to as the “submission agent”) shall register his/her personal information with the Exchange in advance as stipulated in the Enforcement Rules before the submission and shall do the same when there is any change in the registered information. Provided that, in cases where the submission agent has registered or re-registered the changes in the information registered with the Financial Supervisory Service pursuant to the Regulation on Issuance and Disclosure, the registration with the Exchange may be substituted by the submission of a copy of registration documents submitted to the Financial Supervisory Service.

(3) In cases where a submitter has entered into an agency agreement with a submission agent, the submitter shall submit a copy of the agreement to the Exchange without delay and shall do the same when there are any changes in the details of the agreement.

§75. Validity, etc. of Digital Signature

(1) When intending to submit the reports, etc. in a form of electronic document, a submitter shall affix a digital signature on them.

(2) In cases where a submitter has affixed a digital signature on an electronic document pursuant to paragraph (1), it shall be deemed that the submitter has signed or affixed his/her seal on the document.

(3) In the case of the reports, etc. that must be signed by more than one person, the submitter shall keep the paper copy of the relevant documents for the duration that the relevant documents must be disclosed pursuant to the related laws and the regulations of the Exchange and shall submit them without delay upon receiving a request from the Exchange. (Amended on January 28, 2009)

(4) The registration and certification of the digital signature for signing electronic documents digitally pursuant to paragraph (1) and other matters relating to the digital signature shall be accomplished in accordance with the manner stipulated in the Regulation on Securities Issuance and Disclosure.

§76. Reports, etc. transmitted by Financial Supervisory Service

(1) When the KOSPI-stock-listed corporations, etc. submit the reports, etc., which are

required to submit to the Financial Supervisory Service and the Exchange pursuant to the Act and other related statutes, to the Financial Supervisory Service in a form of electronic document, and the Financial Supervisory Service transmits the relevant reports, etc. to the Exchange to be recorded in the computer file of the electronic disclosure system of the Exchange, it shall be deemed that the reports, etc. are submitted to the Exchange. (Amended on January 28, 2009)

(2) In cases where an electronic document was transmitted to the Exchange from the Financial Supervisory Service pursuant to the provisions of paragraph (1) and the submitter of the document has registered or re-registered his/her personal information with the Financial Supervisory Service pursuant to the Regulation on Issuance and Disclosure, the submitter shall submit a copy of the registration documents submitted to the Financial Supervisory Service to the Exchange.

(3) In cases where an electronic document was transmitted to the Exchange from the Financial Supervisory Service pursuant to the provisions of paragraph (1) and the submission agent has registered or re-registered his/her personal information with the Financial Supervisory Service pursuant to the Regulation on Issuance and Disclosure, the submission agent shall submit a copy of the registration documents submitted to the Financial Supervisory Service to the Exchange.

(4) In cases where an electronic document was transmitted to the Exchange from the Financial Supervisory Service pursuant to the provisions of paragraph (1) and the submitter of the document has entered into an agency agreement with a submission agent, the submitter shall submit a copy of the agreement to the Exchange without delay and shall do the same when there are any changes in the details of the agreement.

§77. Submission in Case of Failure of Electronic Disclosure System

(1) In cases where, due to a failure of the electronic disclosure system, the submission of the electronic documents under this Part is not possible, the submitter shall submit the reports, etc. under [§63] to the Exchange in writing or via facsimile, etc. (Amended on January 28, 2009)

(2) When submitting the reports, etc. to the Exchange in writing or via facsimile, etc. pursuant to paragraph (1), the electronic document files shall be attached.

(3) When the electronic disclosure system is restored, the Exchange shall immediately register the electronic document files submitted pursuant to paragraph (2) in the electronic disclosure system.

PART IV. DISCLOSURE OF EXERCISE OF VOTING RIGHTS BY COLLECTIVE INVESTMENT BUSINESS ENTITIES, ETC.

(Title changed on January 28, 2009)

CHAPTER I. GENERAL PROVISIONS

§78. Purpose

The purpose of this Part is to stipulate the matters necessary for the disclosure of the details of the voting rights exercised over KOSPI-stock-listed corporations by collective investment business entities, trust business entities, investment company, etc. (hereinafter referred to as “collective investment business entities, etc.”) pursuant to Articles 87(8), 112(7) and 186(2) of the Act. (Amended on February 22, 2013)

(Wholly amended on January 28, 2009)

§79. Definitions

(1) The term “collective investment business entity” in this Part refers to the collective investment business entity under [§8(4)] of the Act.

(2) The term “investment company, etc.” in this Part refers to the investment company, etc. under Article 182(1) of the Act.

(3) The term “trust business entity” in this Regulation refers to the trust business entity under Article 8(7) of the Act.

(4) [Deleted on February 22, 2013]

(5) [Deleted on February 22, 2013]

(6) The term "disclosure officer" in this Part refers to a director (in the case of investment company, etc., it refers to the director of a collective investment business entity who is a corporate director, managing member or general partner) or a person falling under Article 401-2(1)3 of the Commercial Act, who is authorized to conduct the disclosure duties representing the relevant collective investment business entity, etc.

(7) The term "unfaithful disclosure" in this Part refers to a case where the collective investment business entities, etc. fail to faithfully fulfill the disclosure obligations under the relevant statutes and this Part. (Amended on February 22, 2013)

(8) The term “corporations required to disclose their voting rights” in this Part refers to KOSPI-stock-listed corporations from among the corporations required to disclose their voting rights under Article 87(8) of the Act and the like. (Amended on February 22, 2013)

§80. Faithful Fulfillment of Disclosure Obligations, etc.

(1) The collective investment business entities, etc. shall faithfully and voluntarily disclose the matters to be disclosed pursuant to the relevant statutes and this Part. (Amended on January 28, 2009)

(2) The collective investment business entities, etc. shall, before disclosing the matters to be disclosed under paragraph (1), neither leak nor circulate the details of the relevant information in the securities market in the form of rumors, news, etc. (Amended on January 28, 2009)

§81. Methods of Reporting and Submission of Documents

The matters that the collective investment business entities, etc., are required to disclose to the Exchange shall be prepared in written documents and submitted via postal service, facsimile or in person. Provided that, in the case of submitting such documents in the form of electronic document, it shall be submitted in accordance with Part III of this Regulation. (Amended on January 28, 2009; February 22, 2013)

CHAPTER II. DISCLOSURE OF DETAILS OF VOTING RIGHTS EXERCISED BY COLLECTIVE INVESTMENT BUSINESS ENTITIES, ETC.

(Title changed on January 28, 2009)

§82. Disclosure of Details of Voting Rights Exercised by Collective Investment Business Entities, etc.

(1) When exercising voting rights at the general shareholders' meeting of a KOSPI-stock-listed corporation which has issued the stocks, etc., that belong to the collective investment assets, the relevant collective investment business entities, etc. shall prepare a written document on the details of voting rights exercised during one (1) year from the 1st day of April of the latest year, in accordance with each of the following classifications and submit it to the Exchange by the end of April of each year without delay, for the protection of investors' interests. Provided that, trust business entities shall not apply with the provisions of subparagraphs 2 and 3, but they shall report the details of voting rights exercised within five (5) days after the date of shareholders' meeting. (Amended on September 12, 2008; January 28, 2009; February 22, 2013; December 28, 2016)

1. In the case of exercising the voting rights over merger, transfer or acquisition of business, appointment or dismissal of officers, amendment of the articles of incorporation and other matters which are equivalent thereto and have an apparent influence on investors' interests: Details about voting rights exercised and the rationale.

2. In the case of exercising the voting rights over the corporations required to disclose their voting rights: Details about voting rights exercised and the rationale.

3. In cases where the voting rights are not exercised over the corporations required to disclose their voting rights: Details of reasons for not exercising the voting rights.

(2) [Deleted on February 22, 2013]

(3) The Exchange shall disclose the matters that are disclosed by the collective investment

business entities, etc. under the provisions of paragraph (1) to the investors through its disclosure media. (Amended on January 28, 2009; February 22, 2013)

§83. [Deleted on February 22, 2013]

§84. [Deleted on February 22, 2013]

CHAPTER III. UNFAITHFUL DISCLOSURE

§85. Types of Unfaithful Disclosure

In cases where the collective investment business entities, etc. have failed to disclose the matters to be disclosed under [§82] by the corresponding deadlines, the Exchange shall deem such case as an unfaithful disclosure. (Wholly amended on February 22, 2013)

§86. Publication of Facts about Unfaithful Disclosure by Collective Investment Business Entities, etc.

(1) The Exchange shall, when collective investment business entities, etc. fall under the cases of unfaithful disclosure, make public such fact and the reasons therefor through its disclosure media. (Amended on January 28, 2009; April 18, 2012)

(2) When making public the fact about unfaithful disclosure made by collective investment business entities, etc. pursuant to paragraph (1), the Exchange shall post the fact and the reasons therefor, etc. of the unfaithful disclosure in the Daily Stock Market Review for five (5) days and on the electronic disclosure media for one (1) month, from the date of such unfaithful disclosure. (Amended on April 18, 2012)

§87. [Deleted on January 28, 2009]

PART V. SUPPLEMENTARY PROVISIONS

§88. Designation of Disclosure Officer, etc.

(1) Each KOSPI-stock-listed corporation, bond-listed corporation and collective investment business entity, etc. shall designate an officer in charge of disclosure (referred to as the “disclosure officer”) and register him/her with the Exchange. In such cases, if the relevant

disclosure officer is a person falling under Article 401-2(1)3 of the Commercial Act, the corporation shall notify the Exchange of such fact with the power of delegation issued by the relevant corporation in writing without delay. This provision shall also apply to the case where the disclosure officer is changed. (Amended on January 28, 2009)

(2) Each KOSPI-stock-listed corporation, bond-listed corporation and collective investment business entity, etc. shall designate at least two (2) [one (1), in the case of a bond-listed corporation and special purpose acquisition company] staff members in charge of reporting or disclosure conducted by the relevant corporation (referred to as the “disclosure staff”) and register them with the Exchange. This provision shall also apply to the case where the disclosure staff is changed. (Amended on January 28, 2009; April 21, 2010; June 15, 2011)

(3) In cases where the collective investment business entity, etc. is a KOSPI-stock-listed corporation, the disclosure officer and disclosure staff of the KOSPI-stock-listed corporation under paragraphs (1) and (2) shall be deemed to be the disclosure officer and disclosure staff of the collective investment business entity, etc. (Amended on January 28, 2009)

(4) The disclosure officers and disclosure staff of KOSPI-stock-listed corporations referred to in paragraph (1) and (2) shall complete the training programs on disclosure duties as stipulated in the Enforcement Rules. (Amended on January 28, 2009)

(5) In cases where the disclosure officer and disclosure staff of a KOSPI-stock-listed corporation fail to complete the training programs noted in paragraph (4), the Exchange may request the relevant corporation to replace such disclosure officer or disclosure staff, and in cases where the relevant corporation does not comply with the request for replacement, the Exchange may impose up to three (3) demerit points on the relevant corporation as stipulated in the Enforcement Rules. (Amended on January 28, 2009)

(6) For the holding companies under [§2(11)2], the provisions of [§26] shall apply *mutatis mutandis*, notwithstanding paragraphs (1) through (6), [November 4, 2011]

§89. KOSPI Market Listing and Disclosure Committee

(1) In order to protect the public interest and investors and ensure the fair operation of KOSPI Market, the Exchange may establish a Committee for the deliberation on such matters as the improvement of disclosure system and operation thereof, designation as unfaithful disclosure corporations and imposition of fine therefor, and imposition of penalties for non-fulfillment of disclosure obligations. (Amended on January 28, 2009)

(2) The Exchange shall separately stipulate the matters necessary for the composition and operation of the Committee mentioned in paragraph (1).

§90. Commending and Awarding KOSPI-stock-listed Corporations, etc.

(1) The Exchange may award or commend KOSPI-stock-listed corporations (including their officers and employees) who have made efforts to enhance the transparency of corporate governance and create a climate of faithful disclosure. (Amended on January 28, 2009;

December 1, 2010)

(2) The Exchange may award the person who reports on or informs of violations of disclosure obligations stipulated in Part I to the Exchange, in order to encourage KOSPI-stock-listed corporations to faithfully fulfill the disclosure obligations. [June 15, 2011]

(3) The matters necessary in relation to paragraphs (1) and (2) shall be stipulated separately by the Exchange. (Amended on December 23, 2005; June 15, 2011)

§91. Calculation of Time Periods

The calculation of periods of time under this Regulation shall be made in the manner stipulated in the Enforcement Rules.

§91-2. Public Opinion Gathering

In case this Regulation (including its Enforcement Rules) is to be amended, public opinion of interested parties should be gathered pursuant to the Enforcement Rules.

[April 29, 2020]

§92. Enforcement Rules

Disclosure forms and other specific matters necessary for the enforcement of this Regulation shall be determined by the Exchange. (Amended on December 23, 2005)

ADDENDA
(January 21, 2005)

§1. Effective Date

This Regulation shall become effective on the date when the Exchange is incorporated.

§2. Abolition of Previous Regulations

On the effective date of this Regulation, the Disclosure Regulation, Regulation on Electronic Submission of Reports, etc. by Listed Corporations and Regulation on the Disclosure of Contents of Voting Rights Exercised over the Listed Corporations by Asset Management Companies of the Korea Stock Exchange shall be abolished.

§3. Transitional Measures Following the Abolition of Previous Regulations

The reporting, etc. made prior to the effective date of this Regulation, pursuant to the Disclosure Regulation, Regulation on Electronic Submission of Reports, etc. by Listed Corporations and Regulation on the Disclosure of Contents of Voting Rights Exercised over the Listed Corporations by Asset Management Companies of the Korea Stock Exchange shall be construed as the reporting, etc. made pursuant to this Regulation.

ADDENDUM
(May 13, 2005)

This Regulation shall become effective on May 30, 2005.

ADDENDUM
(July 22, 2005)

This Regulation shall become effective on October 4, 2005.

ADDENDUM
(December 23, 2005)

This Regulation shall become effective on April 1, 2006. Provided that, the amended provisions of [§2(1), (2) & (13), §5(3), §9, §33, §70 and §71] and the deletion of [§2(14)] of the previous version of this Regulation shall become effective on December 26, 2005, and the amended provision of [§18(1)] concerning the time the disclosure request is instigated and the deletion of [§51] of the previous version of this Regulation shall become effective on January 1, 2006.

ADDENDA
(September 8, 2006)

§1. Effective Date

This Regulation shall become effective on September 18, 2006.

§2. Amendment of Other Regulations

Following provisions in the Stock Market Listing Regulation shall be amended as follows:

“The Company Reorganization Act, the Composition Act” in [§2(8)3] shall be construed as “the Debtor Rehabilitation and Bankruptcy Act”, “the company reorganization procedures” in [§83(1)5] shall be construed as “the rehabilitation procedures”, and [§80/9] shall be construed as follows:

9. Application for commencement of rehabilitation procedures

Cases where an application for commencement of rehabilitation procedure has been filed pursuant to the Debtor Rehabilitation and Bankruptcy Act.

ADDENDA
(May 11, 2007)

§1. Effective Date

This Regulation shall become effective on May 17, 2007.

§2. Examples of Application

The amended provisions of [§7(2)7, §12(1)2 & 3 and §31(1)20] shall apply from the fiscal year starting after December 31, 2006.

ADDENDUM
(September 12, 2008)

This Regulation shall become effective on October 1, 2008.

ADDENDA
(January 28, 2009)

§1. Effective Date

This Regulation shall become effective on February 4, 2009. Provided that, the amended provision of [§42(2)] shall become effective on September 1, 2009.

§2. Application in the case of the report on nonpayment of principal of corporate bonds

The amended provision of [§7(1)2(c)(v)] shall apply starting with the case where the payment date of principal arrives after the effective date of this Regulation.

§3. Application in the case of the designation as unfaithful disclosure corporation

The amended provision of [§34] and [§35-2] shall apply starting with the company to which a prior notice on the designation as unfaithful disclosure would be sent after the effective date of this Regulation.

ADDENDUM
(April 15, 2009)

This Regulation shall become effective on April 16, 2009.

ADDENDUM
(July 1, 2009)

This Regulation shall become effective on July 6, 2009.

ADDENDUM
(December 18, 2009)

This Regulation shall become effective on December 21, 2009.

ADDENDUM
(April 21, 2010)

This Regulation shall become effective on April 26, 2010. Provided that, the newly provision of [§8(3)] shall become effective on the day specified in the Enforcement Rules.

ADDENDA
(June 23, 2010)

§1. Effective Date

This Regulation shall become effective on July 1, 2010.

§2. Interim Measure for Disclosure Staff of Listed Foreign Corporations

In the case of a foreign corporation that has been listed on the KOSPI Market before the effective date of this Regulation, the disclosure staff under the amended provisions of [§26] shall be designated within three (3) months of the effective date of this Regulation.

ADDENDA
(Regulation No. 657 / December 1, 2010)

§1. Effective Date

This Regulation shall become effective on January 1, 2011.

§2. Interim Measures

The issue that has been suspended from trading pursuant to [§26(1)1] of the former KOSPI Market Business Regulation before the effective date of this Regulation shall deem that it has been suspended from trading pursuant to this Regulation.

ADDENDA
(Regulation No. 671 / December 29, 2010)

§1. Effective Date

This Regulation shall become effective on March 1, 2011.

§2. Exception in Application

The amended provisions of [§30] shall apply starting with the corporation that has received the request for inquired disclosure pursuant to [§12(1)2] after the effective date of this Regulation.

ADDENDUM
(Regulation No. 735 / June 15, 2011)

This Regulation shall become effective on June 20, 2011. Provided that, the amended provisions of [§90] shall be put into effect on August 1, 2011.

ADDENDA
(Regulation No. 775 / November 4, 2011)

§1. Effective Date

This Regulation shall become effective on November 21, 2011.

§2. Exception to Qualifications of Disclosure Agent

The amended provisions of [§26(2)] shall apply starting with the case of appointing s disclosure agent after the effective date of this Regulation.

ADDENDA
(Regulation No. 828 / April 18, 2012)

§1. Effective Date

This Regulation shall become effective on April 23, 2012.

§2. Exception to Reporting of Disclosure Officer

The amended provisions of [§2(4)] shall apply starting with the corporation reporting the disclosure officer after the effective date of this Regulation.

§3. Exception in Reporting of Overdue Loan Principal and Interest

The amended provisions of [§7(1)2c(vi)] shall apply starting with the case where the payment date of loan principal and interest arrives after the effective date of this Regulation

§4. Exception in Taking Action against Unfaithful Disclosure Corporation

The amended provisions of [§35-2(1)] shall apply starting with the corporation notified of the fact about impending designation as unfaithful disclosure corporation after the effective date of this Regulation

ADDENDA
(Regulation No. 892 / February 22, 2013)

§1. Effective Date

The Regulation shall be put into effect on the date specified in the Enforcement Rules, which is within six (6) months of the approval date of the Financial Services Commission. Provided that, the amended provisions of [§2(7), §3(4), §6(1), §7(1)1(e) (excluding the ratio change in disclosure criteria), [§7(1)2(a)(ii), 2(a)(iv), 2(e)(vi) & 2(e)(vii)], [§7(1)3(a)(v)], [§10(1)], [§15(3)], [§21(2)], [§26], [§30(2)], [§31/4], [§33] through [§35], [§39(1)], [§40(2)] (excluding each subparagraph), [§40(3)], [§55(1)], [§57(1)], [§61], [§78], [§79] and [§81] through [§85] shall be put into effect on March 4, 2013 and the amended provisions of [§6(2)], [§29], [§45-2] and [§56] shall be put into effect on May 2, 2013.

§2. Exception to Reporting of Admission of Principal Consolidated Subsidiary

The KOSPI-stock-listed holding company or parent company shall report all subsidiaries falling under [§7(1)3(a)(iii)] together before the effective date of this Regulation.

§3. Exception to Designating as Unfaithful Disclosure related to Reporting of Material Management Matters of Consolidated Subsidiaries

In cases where provisions of [§29/1] is applied because of failure to comply with the amended provisions of [§8-2], it shall apply starting with the company notified in advance of the designation as unfaithful disclosure corporation after January 1, 2014.

§4. Exception in Ex-post Assessment of Reversal of Inquired Disclosure

The amended provisions of [§30(2)1 & 3] shall apply starting with the inquired disclosure that the Exchange requests after the effective date of this Regulation.

ADDENDUM

(Regulation No. 947 / September 11, 2013)

This Regulation shall become effective on September 17, 2013.

ADDENDUM

(Regulation No. 1169 / April 29, 2015)

This Regulation shall become effective on May 4, 2015.

ADDENDA

(Regulation No. 1216 / July 22, 2015)

§1. Effective Date

This Regulation shall become effective on September 7, 2015. Provided that, the amended provisions of [§2(4)] shall be put into effect on July 27, 2015, and the amended provisions of [§6(2)] shall be put into effect on January 2, 2016

§2. Exception in Applying the Matters to be disclosed by Foreign Listed Corporations

If a foreign holding company falls under the amended provisions (limited to the case where the foreign holding company received restrictions or measures falling under the amended provisions of [§25(1)8] before the effective date of this Regulation and the restrictions and measures are still effective as of the effective date of this Regulation) of [§25(1)8] as of the effective date of this Regulation, the foreign holding company shall report the details within one (1) month from the effective date of this Regulation.

§3. Exception in Applying Matters related to Unfaithful Disclosure Corporation such as Imposition of Fine, Requests for Replacement of Disclosure Officers, etc. and Submission of Improvement Plan, etc.

Amended provisions of [§35(2)], [§38-2] and [§39] shall apply to the corporations that received prior notices on the designation as unfaithful disclosure corporations after the effective date of this Regulation.

ADDENDA

(Regulation No. 1276 / December 30, 2015)

§1. Effective Date

This Regulation shall become effective on May 2, 2016. Provided that, the amended provisions of [§7(1)2(d)(iii)] and [§57(1)7(b)] shall be put into effect on December 31, 2015.

§2. Exceptions in Applying Matters related to Unfaithful Disclosure, etc.

(1) For the breach of disclosure obligations pertaining to the amended provisions of [§7(1)4], the provisions of [§29] (excluding subparagraph 2) through [§31] shall apply starting with the case of violation that first occurred after six (6) months from the effective date of this Regulation.

(2) The provision pertaining to the imposition of demerit points on the KOSPI-stock-listed corporation for the violation of the amended provisions of [§44(2)] shall apply after six (6) months from the effective date of this Regulation.

ADDENDA

(Regulation No. 1396 / December 28, 2016)

§1. Effective Date

This Regulation shall become effective on January 2, 2017. Provided that, the amended provisions of [§35-2] shall become effective in April 3, 2017.

§2. Exceptions in Applying Provisions on the Fine for Noncompliance with Disclosure Obligations

The amended provisions of [§35-2] shall apply starting with the corporation that is prior notified on designation as an unfaithful disclosure corporation after the effective date of this Regulation.

ADDENDA

(Regulation No. 1616 / December 19, 2018)

§1. Effective Date

This Regulation shall become effective on January 1, 2019.

§2. Exceptions in Applying Provisions on Disclosure of the Report on Corporate Governance

The amended provisions of [§24-2], subparagraphs 1 and 2-2 of [§29], and [Annex 1] shall apply starting with the KOSPI-stock-listed corporation for which the statutory submission

deadline of the annual reports arrives after the effective date of this Regulation.

ADDENDUM

(Regulation No. 1825 / April 29, 2020)

This Regulation shall become effective on May 8, 2020.

ADDENDA (KOSPI Market Listing Regulation)

(Regulation No. 1976 / August 25, 2021)

§1. Effective Date

This Regulation shall become effective on August 25, 2021. Provided that, the amended provisions of [§2(1)1], [§23(1)2], [§67(2)], [§68(1)9], [§72(2)8], [§74], [§75], [§76], [§76-2] related to the listing after merger of a special purpose acquisition company and [§3] of the Addenda shall become effective from the date stipulated in the Enforcement Rules.

§2. Omitted

§3. Amendments of Other Regulations

A part of the KOSPI Market Disclosure Regulation shall be amended as follows:

Of [§11(2)1(d)], “merger by a method in which a new corporation is established or the relevant KOSPI market-listed-special purpose acquisition company” shall be “merger by a method in which a new corporation is established”.

ADDENDUM

(Regulation No. 2005 / November 24, 2021)

This Regulation shall become effective on December 13, 2021. Provided that, the amended provisions of [§2(7)], [§11] and [§12] shall become effective from December 30, 2021.

ADDENDA (KOSPI Market Listing Regulation)

(Regulation No. 2087 / December 7, 2022)

§1. Effective Date

This Regulation shall become effective on December 12, 2022.

§2 through §6. Omitted

§3. Amendments of Other Regulations

A part of the KOSPI Market Disclosure Regulation shall be amended as follows:

Of [§7(1)2(e)(i)Ⓒ], “the sales amount (limited to the sales of goods and the amount of service provided; the same hereinafter in (iii) and [§40(2)4(a)(iii)])” shall be “the sales amount”.

ADDENDUM

(Regulation No. 2112 / March 29, 2023)

This Regulation shall become effective on January 1, 2024. Provided that the amended provisions of [§32(1)6] shall become effective from April 1, 2023.

ADDENDA

(Regulation No. 2267 / November 13, 2024)

§1. Effective Date

This Regulation shall become effective on December 1, 2024.

§2. Application of Provisions on Acquisition and Resale of Convertible Bonds, etc. before Maturity

The amended provisions of [§7(1)2(a)(vi)Ⓓ] and subparagraph 7 of [§31] shall apply to cases where decisions on issuance pursuant to [§7(1)2(a)(vi)Ⓓ] after the effective date of these Regulations.

ADDENDA (KOSPI Market Listing Regulation)

(Regulation No. 2342 / July 9, 2025)

§1. Effective Date

This Regulation shall become effective on July 10, 2025. Provided that the amended provisions of [§47(1)9] and [§48(1)9] shall become effective on January 1, 2026, and the amended provisions of [§47(1)7] and [§48(2)2] and [§6] of this ADDENDA shall become effective on January 1, 2027.

§2. Application of Provisions on Review Requirements for Re-listing after Spin-off

(Omitted)

§3. Interim Measures and Application of Provisions Concerning Sales Amount Not Up to Standards

(1) Notwithstanding the amended provisions of [§47(1)7] and [§48(2)2], in the case where a

listed corporation reports to the Exchange that it has received an audit report (limited to one in which the auditor's opinion is unqualified opinion) pursuant to the disclosure regulations for the period from January 1, 2027 to December 31, 2028, the sales amount noted in the revised regulations of [§47(1)1] and [§48(2)2] shall be applied with the sales amount stated in the following table.

Application period	Sales amount
From January 1, 2027 to December 31, 2027	KRW 10 billion
From January 1, 2028 to December 31, 2028	KRW 20 billion

(2) (Omitted)

(3) (Omitted)

(4) (Omitted)

§4. Interim Measures and Application of Provisions Concerning Market Capitalization Not Up to Standards

(Omitted)

§5. Application of Provisions Concerning Auditor's Opinion Not Up to Standards

(Omitted)

§6. Amendment of Other Regulations

A part of the KOSPI Market Disclosure Regulations shall be revised as follows.

“KRW 5 billion” specified in [§7(1)2(e)(i)©] shall be revised to “KRW 30 billion”.

“KRW 5 billion” specified in [§40(2)4(a)(iii)] shall be revised to “KRW 30 billion”.

§7. Exceptions to Amendment of Other Regulations

Notwithstanding the amended regulations of the KOSPI Market Disclosure Regulations revised in accordance with [§6] of this ADDENDA, sales amount noted in the amended regulations in the KOSPI Market Disclosure Regulations revised in accordance with [§6] of the ADDENDA for the period from January 1, 2027 to December 31, 2028 shall be applied with the sales amount stated in the table in [§3(1)] of this ADDENDA.

ADDENDUM

(Regulation 2346 / July 9, 2025)

This Regulation shall become effective on August 1, 2025.

ADDENDUM

(Regulation 2360 / October 1, 2025)

This Regulation shall become effective on October 20, 2025.

ADDENDUM

(Regulation 2404 / January 28, 2026)

This Regulation shall become effective on March 1, 2026.

ADDENDA (KOSPI Market Listing Regulation)

(Regulation No. 2433 / April 15, 2026)

§1. Effective Date

This Regulation shall become effective on the date of promulgation of the Draft Partial Amendment to the Enforcement Decree of the Financial Investment Services and Capital Markets Act”, which was previously announced for legislation (Public Notice No. 2026-53).

§2. Amendments of Other Regulation

(1) (Omitted)

(2) Part of the KOSPI Market Disclosures Regulations shall be partially revised as follows.

In [§40(6)], “case of the derivatives linked securities” shall be replaced with “cases of the derivatives linked securities under Subparagraph (c) of Article 125(2) of the Enforcement Decree of the Act, single-stock ETF securities under [§113(2)4(c)(v)] of the Listing Regulations, and single-stock ETN securities under [§149-3(2)2(c) of the same Regulations”.

ANNEXES

[Annex 1] Core Principles of Corporate Governance

[December 12, 2018]

Core Principles of Corporate Governance

Classification		Core Principles
Shareholders	Shareholders' Rights	① Shareholders shall be able to receive sufficient and timely information, which is necessary to exercise their rights, and to exercise their rights through appropriate procedures.
	Equitable Treatment of Shareholders	② Shareholders shall hold fair voting rights according to the class and number of shares owned; and the corporation shall make efforts to be equipped with a system that provides corporate information to the shareholders in a fair manner.
Board of Directors ("the Board")	Functions of the Board	③ The Board shall establish the business objectives and strategies in the best interests of the corporation and its shareholders, and effectively supervise the activities of the management.
	Composition of the Board	④ The Board shall be composed so as to facilitate effective decision-making and supervision of management; and the directors shall be appointed through a transparent process, which reflects the diverse opinions of shareholders.
	Responsibilities of Outside Directors	⑤ Outsider directors shall be able to independently participate in important corporate management decision-making, and to supervise and support the management as board members.
	Evaluation of Outside Directors' Activities	⑥ To promote active performance of duties by the outside directors, their activities shall undergo fair evaluation; and the decisions on their remuneration and reappointment shall be made on the basis of the outcomes of such evaluation.
	Operation of the Board	⑦ The Board shall be operated efficiently and rationally to ensure that the management decisions are made in the best interests of the corporation and shareholders.
	Committees of the Board	⑧ For an efficient operation, the Board shall establish internal committees which are responsible for the performance of specific functions and roles.
Audit Systems	Internal Auditing Bodies	⑨ Internal auditing bodies, such as the audit committee and auditors, shall perform their auditing duties faithfully by maintaining independence from the management and controlling shareholders, and the details of key activities of internal auditing bodies shall be disclosed.
	External Auditors	⑩ In order to make certain that the shareholders and other users have confidence in the corporate financial information, an external auditor must perform his/her auditing tasks fairly and independently from the corporation audited, including its management and controlling shareholders.